

1 ENGROSSED SENATE  
2 BILL NO. 1627

By: Paxton of the Senate

3 and

4 Hilbert of the House

5  
6 An Act relating to multiple versions of statutes;  
7 amending, merging, consolidating, and repealing  
8 multiple versions of statutes; amending 10A O.S.  
9 2021, Section 1-2-101, as amended by Section 1,  
10 Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025, Section  
11 1-2-101); repealing 10A O.S. 2021, Section 1-2-101,  
12 as amended by Section 1, Chapter 260, O.S.L. 2025  
13 (10A O.S. Supp. 2025, Section 1-2-101); repealing 10A  
14 O.S. 2021, Section 1-2-101, as amended by Section  
15 344, Chapter 486, O.S.L. 2025 (10A O.S. Supp. 2025,  
16 Section 1-2-101); amending 21 O.S. 2021, Section  
17 13.1, as last amended by Section 1, Chapter 162,  
18 O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1);  
19 repealing 21 O.S. 2021, Section 13.1, as amended by  
20 Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp.  
21 2025, Section 13.1); repealing 21 O.S. 2021, Section  
22 13.1, as last amended by Section 2, Chapter 18,  
23 O.S.L. 2025 (21 O.S. Supp. 2025, Section 13.1);  
24 repealing 21 O.S. 2021, Section 13.1, as last amended  
by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp.  
2025, Section 13.1); amending 21 O.S. 2021, Section  
425, as amended by Section 370, Chapter 486, O.S.L.  
2025 (21 O.S. Supp. 2025, Section 425); repealing 21  
O.S. 2021, Section 425, as amended by Section 2,  
Chapter 329, O.S.L. 2025 (21 O.S. Supp. 2025, Section  
425); amending 21 O.S. 2021, Section 540A, as amended  
by Section 192, Chapter 486, O.S.L. 2025 (21 O.S.  
Supp. 2025, Section 540A); repealing 21 O.S. 2021,  
Section 540A, as amended by Section 1, Chapter 224,  
O.S.L. 2025 (21 O.S. Supp. 2025, Section 540A);  
amending 21 O.S. 2021, Section 644, as last amended  
by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
2025, Section 644); repealing 21 O.S. 2021, Section  
644, as last amended by Section 1, Chapter 147,  
O.S.L. 2025 (21 O.S. Supp. 2025, Section 644);  
repealing 21 O.S. 2021, Section 644, as last amended  
by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp.

2025, Section 644); repealing 21 O.S. 2021, Section 644, as last amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025, Section 644); amending 21 O.S. 2021, Section 650, as amended by Section 16, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650); repealing 21 O.S. 2021, Section 650, as amended by Section 1, Chapter 32, O.S.L. 2025 (21 O.S. Supp. 2025, Section 650); amending 21 O.S. 2021, Section 748, as last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748); repealing 21 O.S. 2021, Section 748, as last amended by Section 2, Chapter 291, O.S.L. 2025 (21 O.S. Supp. 2025, Section 748); amending 21 O.S. 2021, Section 843.5, as last amended by Section 8, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5); repealing 21 O.S. 2021, Section 843.5, as amended by Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 843.5); repealing 21 O.S. 2021, Section 843.5, as last amended by Section 1, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5); amending 21 O.S. 2021, Section 852.1, as amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1); repealing 21 O.S. 2021, Section 852.1, as amended by Section 1, Chapter 113, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1); amending 21 O.S. 2021, Section 856.3, as amended by Section 159, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 856.3); repealing 21 O.S. 2021, Section 856.3, as amended by Section 1, Chapter 108, O.S.L. 2025 (21 O.S. Supp. 2025, Section 856.3); repealing 21 O.S. 2021, Section 888, as amended by Section 4, Chapter 455, O.S.L. 2002; amending 21 O.S. 2021, Section 1021.2, as last amended by Section 49, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1021.2); repealing 21 O.S. 2021, Section 1021.2, as amended by Section 9, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1021.2); amending 21 O.S. 2021, Section 1024.1, as last amended by Section 4, Chapter 29, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1024.1); repealing 21 O.S. 2021, Section 1024.1, as amended by Section 14, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1024.1); amending 21 O.S. 2021, Section 1031, as last amended by Section 397, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1031); repealing 21 O.S. 2021, Section 1031, as last amended by Section 5, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1031); amending 21 O.S. 2021, Section

1040.12a, as last amended by Section 26, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.12a); repealing 21 O.S. 2021, Section 1040.12a, as amended by Section 20, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 1040.12a); repealing 21 O.S. 2021, Section 1040.12a, as last amended by Section 3, Chapter 29, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.12a); amending 21 O.S. 2021, Section 1040.13b, as last amended by Section 1, Chapter 23, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.13b); repealing 21 O.S. 2021, Section 1040.13b, as last amended by Section 399, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1040.13b); amending 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111); repealing 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 103, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111); repealing 21 O.S. 2021, Section 1111, as last amended by Section 1, Chapter 365, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1111); repealing 21 O.S. 2021, Section 1115, as amended by Section 5, Chapter 455, O.S.L. 2002; amending 21 O.S. 2021, Section 1123, as last amended by Section 2, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123); repealing 21 O.S. 2021, Section 1123, as last amended by Section 2, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123); repealing 21 O.S. 2021, Section 1123, as last amended by Section 38, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1123); amending 21 O.S. 2021, Section 1173, as last amended by Section 1, Chapter 145, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1173); repealing 21 O.S. 2021, Section 1173, as last amended by Section 118, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1173); amending 21 O.S. 2021, Section 1277, as amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277); repealing 21 O.S. 2021, Section 1277, as amended by Section 1, Chapter 70, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1277); amending 21 O.S. 2021, Section 1289.16, as amended by Section 3, Chapter 261, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1289.16); repealing 21 O.S. 2021, Section 1289.16, as amended by Section 131, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1289.16); repealing 21 O.S. 2021, Section 1290.5, as amended by Section 5, Chapter 146, O.S.L. 2021; repealing 21 O.S. 2021, Section 1451, as amended by

1 Section 1, Chapter 221, O.S.L. 2016; repealing 21  
2 O.S. 2021, Section 1521, as amended by Section 2,  
3 Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021,  
4 Section 1541.2, as amended by Section 5, Chapter 221,  
5 O.S.L. 2016; repealing 21 O.S. 2021, Section 1541.3,  
6 as amended by Section 6, Chapter 221, O.S.L. 2016;  
7 repealing 21 O.S. 2021, Section 1577, as amended by  
8 Section 11, Chapter 221, O.S.L. 2016; repealing 21  
9 O.S. 2021, Section 1578, as amended by Section 12,  
10 Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021,  
11 Section 1579, as amended by Section 13, Chapter 221,  
12 O.S.L. 2016; repealing 21 O.S. 2021, Section 1621, as  
13 amended by Section 15, Chapter 221, O.S.L. 2016;  
14 repealing 21 O.S. 2021, Section 1704, as amended by  
15 Section 16, Chapter 221, O.S.L. 2016; repealing 21  
16 O.S. 2021, Section 1705, as amended by Section 17,  
17 Chapter 221, O.S.L. 2016; repealing 21 O.S. 2021,  
18 Section 1713, as amended by Section 18, Chapter 221,  
19 O.S.L. 2016; repealing 21 O.S. 2021, Section 1731, as  
20 amended by Section 19, Chapter 221, O.S.L. 2016;  
21 amending 21 O.S. 2021, Section 1903, as amended by  
22 Section 2, Chapter 405, O.S.L. 2025 (21 O.S. Supp.  
23 2025, Section 1903); repealing 21 O.S. 2021, Section  
24 1903, as amended by Section 62, Chapter 486, O.S.L.  
2025 (21 O.S. Supp. 2025, Section 1903); amending 47  
O.S. 2021, Section 11-902, as amended by Section 1,  
Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025, Section  
11-902); repealing 47 O.S. 2021, Section 11-902, as  
amended by Section 3, Chapter 172, O.S.L. 2025 (47  
O.S. Supp. 2025, Section 11-902); repealing 47 O.S.  
2021, Section 11-902, as amended by Section 6,  
Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025, Section  
11-902); repealing 47 O.S. 2021, Section 11-902, as  
amended by Section 33, Chapter 486, O.S.L. 2025 (47  
O.S. Supp. 2025, Section 11-902); and declaring an  
emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-2-101, as  
amended by Section 1, Chapter 26, O.S.L. 2025 (10A O.S. Supp. 2025,  
Section 1-2-101), is amended to read as follows:

1       Section 1-2-101. A. 1. The Department of Human Services shall  
2 establish a statewide centralized hotline for the reporting of child  
3 abuse or neglect to the Department.

4       2. The Department shall provide hotline-specific training  
5 including, but not limited to, interviewing skills, customer service  
6 skills, narrative writing, necessary computer systems, making case  
7 determinations, and identifying priority situations.

8       3. The Department is authorized to contract with third parties  
9 in order to train hotline workers.

10      4. The Department shall develop a system to track the number of  
11 calls received, and of that number:

- 12          a. the number of calls screened out,
- 13          b. the number of referrals assigned,
- 14          c. the number of calls received by persons unwilling to  
15             disclose basic personal information including, but not  
16             limited to, first and last name, and
- 17          d. the number of calls in which the allegations were  
18             later found to be unsubstantiated or ruled out.

19      5. The Department shall electronically record each referral  
20 received by the hotline and establish a secure means of retaining  
21 the recordings for twelve (12) months. The recordings shall be  
22 confidential and subject to disclosure only if a court orders the  
23 disclosure of the referral. The Department shall redact any  
24

1 information identifying the reporting party unless otherwise ordered  
2 by the court.

3 6. Each referral received by the hotline alleging abuse or  
4 neglect wherein the alleged perpetrator is someone other than a  
5 person responsible for the child's health, safety, or welfare shall  
6 be immediately reported to the appropriate local law enforcement  
7 agency, in writing, for the purpose of conducting a possible  
8 criminal investigation. The hotline supervisor shall ensure that a  
9 report has been made upon receipt of a referral prior to the  
10 referral being screened out. The Department shall maintain a record  
11 of its transmission of each report to law enforcement.

12 B. 1. Every person having reason to believe that a child under  
13 the age of eighteen (18) years is a victim of abuse or neglect shall  
14 report the matter immediately to the Department of Human Services.  
15 Reports shall be made to the hotline provided for in subsection A of  
16 this section. Any allegation of abuse or neglect reported in any  
17 manner to a county office shall immediately be referred to the  
18 hotline by the Department. Provided, however, that in actions for  
19 custody by abandonment, provided for in Section 2-117 of Title 30 of  
20 the Oklahoma Statutes, there shall be no reporting requirement.

21 2. a. Every school employee having reason to believe that a  
22 student under the age of eighteen (18) years is a  
23 victim of abuse or neglect shall report the matter  
24 immediately to the Department of Human Services and

1 local law enforcement. Reports to the Department  
2 shall be made to the hotline provided for in  
3 subsection A of this section. Any allegation of abuse  
4 or neglect reported in any manner to a county office  
5 shall immediately be referred to the hotline by the  
6 Department. Provided, however, that in actions for  
7 custody by abandonment, provided for in Section 2-117  
8 of Title 30 of the Oklahoma Statutes, there shall be  
9 no reporting requirement.

10 b. Every school employee having reason to believe that a  
11 student age eighteen (18) years or older is a victim  
12 of abuse or neglect shall report the matter  
13 immediately to local law enforcement.

14 c. In reports required by subparagraph a or b of this  
15 paragraph, local law enforcement shall keep  
16 confidential and redact any information identifying  
17 the reporting school employee unless otherwise ordered  
18 by the court. A school employee with knowledge of a  
19 report required by subparagraph a or b of this  
20 paragraph shall not disclose information identifying  
21 the reporting school employee unless otherwise ordered  
22 by the court or as part of an investigation by local  
23 law enforcement or the Department.

1        3. Every physician, surgeon, or other health care professional  
2 including doctors of medicine, licensed osteopathic physicians,  
3 residents and interns, or any other health care professional or  
4 midwife involved in the prenatal care of expectant mothers or the  
5 delivery or care of infants shall promptly report to the Department  
6 instances in which an infant tests positive for alcohol or a  
7 controlled dangerous substance. This shall include infants who are  
8 diagnosed with Neonatal Abstinence Syndrome or Fetal Alcohol  
9 Spectrum Disorder.

10       4. No privilege or contract shall relieve any person from the  
11 requirement of reporting pursuant to this section.

12       5. The reporting obligations under this section are individual,  
13 and no employer, supervisor, administrator, governing body or entity  
14 shall interfere with the reporting obligations of any employee or  
15 other person or in any manner discriminate or retaliate against the  
16 employee or other person who in good faith reports suspected child  
17 abuse or neglect, or who provides testimony in any proceeding  
18 involving child abuse or neglect. Any employer, supervisor,  
19 administrator, governing body or entity who discharges,  
20 discriminates or retaliates against the employee or other person  
21 shall be liable for damages, costs and attorney fees. If a child  
22 who is the subject of the report or other child is harmed by the  
23 discharge, discrimination or retaliation described in this  
24



1 paragraph, the party harmed may file an action to recover damages,  
2 costs and attorney fees.

3 6. Every physician, surgeon, other health care professional or  
4 midwife making a report of abuse or neglect as required by this  
5 subsection or examining a child to determine the likelihood of abuse  
6 or neglect and every hospital or related institution in which the  
7 child was examined or treated shall provide, upon request, copies of  
8 the results of the examination or copies of the examination on which  
9 the report was based and any other clinical notes, X-rays,  
10 photographs, and other previous or current records relevant to the  
11 case to law enforcement officers conducting a criminal investigation  
12 into the case and to employees of the Department of Human Services  
13 conducting an investigation of alleged abuse or neglect in the case.

14 C. ~~Any~~ Except as provided in Section 593 of Title 21 of the  
15 Oklahoma Statutes, any person who knowingly and willfully fails to  
16 promptly report suspected child abuse or neglect or who interferes  
17 with the prompt reporting of suspected child abuse or neglect may be  
18 reported to local law enforcement for criminal investigation and,  
19 upon conviction thereof, shall be guilty of a misdemeanor. ~~Any~~  
20 Except as provided in Section 593 of Title 21 of the Oklahoma  
21 Statutes, any person with prolonged knowledge of ongoing child abuse  
22 or neglect who knowingly and willfully fails to promptly report such  
23 knowledge may be reported to local law enforcement for criminal  
24 investigation and, upon conviction thereof, shall be guilty of a

1 Class D1 felony offense and shall be punished by imprisonment as  
2 provided for in subsections B through F of Section 20N of Title 21  
3 of the Oklahoma Statutes. For the purposes of this paragraph,  
4 "prolonged knowledge" shall mean knowledge of at least six (6)  
5 months of child abuse or neglect.

6 D. 1. Any person who knowingly and willfully makes a false  
7 report pursuant to the provisions of this section or a report that  
8 the person knows lacks factual foundation may be reported to local  
9 law enforcement for criminal investigation and, upon conviction  
10 thereof, shall be guilty of a misdemeanor.

11 2. If a court determines that an accusation of child abuse or  
12 neglect made during a child custody proceeding is false and the  
13 person making the accusation knew it to be false at the time the  
14 accusation was made, the court may impose a fine, not to exceed Five  
15 Thousand Dollars (\$5,000.00) and reasonable attorney fees incurred  
16 in recovering the sanctions, against the person making the  
17 accusation. The remedy provided by this paragraph is in addition to  
18 paragraph 1 of this subsection or to any other remedy provided by  
19 law.

20 E. Nothing contained in this section shall be construed to  
21 exempt or prohibit any person from reporting any suspected child  
22 abuse or neglect pursuant to subsection B of this section.  
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1       SECTION 2.       REPEALER       10A O.S. 2021, Section 1-2-101, as  
2 amended by Section 1, Chapter 260, O.S.L. 2025 (10A O.S. Supp. 2025,  
3 Section 1-2-101), is hereby repealed.

4       SECTION 3.       REPEALER       10A O.S. 2021, Section 1-2-101, as  
5 amended by Section 344, Chapter 486, O.S.L. 2025 (10A O.S. Supp.  
6 2025, Section 1-2-101), is hereby repealed.

7       SECTION 4.       AMENDATORY       21 O.S. 2021, Section 13.1, as  
8 last amended by Section 1, Chapter 162, O.S.L. 2025 (21 O.S. Supp.  
9 2025, Section 13.1), is amended to read as follows:

10       Section 13.1.   Persons convicted of:

11       1.   First degree murder as provided for in Section 701.7 of this  
12 title;

13       2.   Second degree murder as provided for in Section 701.8 of  
14 this title;

15       3.   Manslaughter in the first degree as provided for in Section  
16 711 of this title;

17       4.   Poisoning with intent to kill as provided for in Section 651  
18 of this title;

19       5.   Shooting with intent to kill, use of a vehicle to facilitate  
20 use of a firearm, crossbow or other weapon, assault, battery, or  
21 assault and battery with a deadly weapon or by other means likely to  
22 produce death or great bodily harm, as provided for in Sections 644  
23 and 652 of this title;

24

1       6. Assault with intent to kill as provided for in Section 653  
2 of this title;

3       7. Conjoint robbery as provided for in Section 800 of this  
4 title;

5       8. Robbery with a dangerous weapon as provided for in Section  
6 801 of this title;

7       9. First degree robbery as provided for in Section 797 of this  
8 title;

9       10. First degree rape as provided for in Section 1111 or 1114  
10 of this title;

11       11. First degree arson as provided for in Section 1401 of this  
12 title;

13       12. First degree burglary as provided for in Section 1431 of  
14 this title;

15       13. Bombing as provided for in Section 1767.1 of this title;

16       14. Any crime against a child as provided for in Section 843.5  
17 of this title;

18       15. Forcible sodomy as provided for in Section 888 of this  
19 title;

20       16. Child sexual abuse material or aggravated child sexual  
21 abuse material as provided for in Section 1021.2, 1021.3, 1024.1,  
22 1024.2, or 1040.12a of this title;

23       17. Child sex trafficking as defined in Section 1030 of this  
24 title;

1        18. Lewd molestation of a child as provided for in Section 1123  
2 of this title;

3        19. Abuse of a vulnerable adult as defined in Section 10-103 of  
4 Title 43A of the Oklahoma Statutes;

5        20. Aggravated trafficking as provided for in subsection C of  
6 Section 2-415 of Title 63 of the Oklahoma Statutes;

7        21. Aggravated assault and battery as provided for in Section  
8 646 of this title upon any person defending another person from  
9 assault and battery; ~~or~~

10       22. Human trafficking as defined in Section 748 of this title;

11       23. Accessory to murder in the first degree or accessory to  
12 murder in the second degree as provided for in Section 175 of this  
13 title; or

14       24. Discharging a firearm at or into a dwelling or building  
15 used for public or business purposes, as provided for in Section  
16 1289.17A of this title,  
17 or any attempt, conspiracy, or solicitation thereof, shall be  
18 required to serve not less than eighty-five percent (85%) of any  
19 sentence of imprisonment imposed by the judicial system prior to  
20 becoming eligible for consideration for parole. Persons convicted  
21 of these offenses shall not be eligible for earned credits or any  
22 other type of credits which have the effect of reducing the length  
23 of the sentence to less than eighty-five percent (85%) of the  
24 sentence imposed.

1       SECTION 5.       REPEALER       21 O.S. 2021, Section 13.1, as  
2 amended by Section 5, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,  
3 Section 13.1), is hereby repealed.

4       SECTION 6.       REPEALER       21 O.S. 2021, Section 13.1, as last  
5 amended by Section 2, Chapter 18, O.S.L. 2025 (21 O.S. Supp. 2025,  
6 Section 13.1), is hereby repealed.

7       SECTION 7.       REPEALER       21 O.S. 2021, Section 13.1, as last  
8 amended by Section 1, Chapter 352, O.S.L. 2025 (21 O.S. Supp. 2025,  
9 Section 13.1), is hereby repealed.

10       SECTION 8.       AMENDATORY       21 O.S. 2021, Section 425, as  
11 amended by Section 370, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
12 2025, Section 425), is amended to read as follows:

13       Section 425. A. Any person who engages in a pattern of  
14 criminal offenses in two or more counties or municipalities in this  
15 state or who attempts or conspires with others to engage in a  
16 pattern of criminal offenses shall, upon conviction, be guilty of a  
17 Class D1 felony offense punishable by imprisonment as provided for  
18 in subsections B through F of Section 20N of this title, or by a  
19 fine ~~in an amount~~ not more than Twenty-five Thousand Dollars  
20 (\$25,000.00), or by both such fine and imprisonment. Such  
21 punishment shall be in addition to any penalty imposed for any  
22 offense involved in the pattern of criminal offenses. Double  
23 jeopardy shall attach upon conviction.

24

1 B. For purposes of this ~~act~~ this section and Section 125.1 of  
2 Title 22 of the Oklahoma Statutes, "pattern of criminal offenses"  
3 means:

4 1. Two or more criminal offenses are committed that are part of  
5 the same plan, scheme, or adventure; ~~or~~

6 2. A sequence of two or more of the same criminal offenses are  
7 committed and are not separated by an interval of more than thirty  
8 (30) days between the first and second offense, the second and  
9 third, and so on; or

10 3. Two or more criminal offenses are committed, each proceeding  
11 from or having as an antecedent element a single prior incident or  
12 pattern of fraud, robbery, burglary, theft, identity theft, receipt  
13 of stolen property, false personation, false pretenses, obtaining  
14 property by trick or deception, taking a credit or debit card  
15 without consent, or the making, transferring, or receiving of a  
16 false or fraudulent identification card.

17 C. Jurisdiction and venue for a pattern of criminal offenses  
18 occurring in multiple counties in this state shall be determined as  
19 provided in Section ~~4~~ 125 of ~~this act~~ Title 22 of the Oklahoma  
20 Statutes.

21 SECTION 9. REPEALER 21 O.S. 2021, Section 425, as  
22 amended by Section 2, Chapter 329, O.S.L. 2025 (21 O.S. Supp. 2025,  
23 Section 425), is hereby repealed.

1       SECTION 10.       AMENDATORY       21 O.S. 2021, Section 540A, as  
2 amended by Section 192, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
3 2025, Section 540A), is amended to read as follows:

4       Section 540A. A. Any operator of a motor vehicle who has  
5 received a visual and audible signal, a flashing red light, flashing  
6 red and blue lights, flashing blue and white lights, or any other  
7 combination of flashing red, blue, and white lights, and a siren  
8 from a peace officer driving a motor vehicle showing the same to be  
9 an official police, sheriff, highway patrol or state game ranger  
10 vehicle directing the operator to bring the vehicle to a stop and  
11 who willfully increases the speed or extinguishes the lights of the  
12 vehicle in an attempt to elude such peace officer, or willfully  
13 attempts in any other manner to elude the peace officer, or who does  
14 elude such peace officer, is guilty of a misdemeanor. The peace  
15 officer, while attempting to stop a violator of this section, may  
16 communicate a request for the assistance of other peace officers  
17 from any office, department or agency. Any peace officer within  
18 this state having knowledge of such request is authorized to render  
19 such assistance in stopping the violator and may effect an arrest  
20 under this section upon probable cause. Violation of this  
21 subsection shall constitute a misdemeanor and shall be punishable by  
22 not more than one (1) year imprisonment in the county jail or by a  
23 fine of not less than One Hundred Dollars (\$100.00) nor more than  
24 Two Thousand Dollars (\$2,000.00) or by both such fine and



1 imprisonment. A second or subsequent violation of this subsection  
2 shall be punishable by not more than one (1) year in the county  
3 jail, or by a fine of not less than Five Hundred Dollars (\$500.00)  
4 nor more than Five Thousand Dollars (\$5,000.00) or both such fine  
5 and imprisonment.

6 B. Any person who violates the provisions of subsection A of  
7 this section in such manner as to endanger any other person shall be  
8 deemed guilty of a Class C1 felony offense punishable by  
9 imprisonment as provided for in subsections B through E of Section  
10 20L of this title, or by a fine ~~of~~ not less than One Thousand  
11 Dollars (\$1,000.00) nor more than Five Thousand Dollars (\$5,000.00),  
12 or by both such fine and imprisonment.

13 C. 1. Any person who causes an accident, while eluding or  
14 attempting to elude an officer, resulting in great bodily injury to  
15 any other person while driving or operating a motor vehicle within  
16 this state and who is in violation of the provisions of subsection A  
17 of this section may be charged with a violation of the provisions of  
18 this subsection. Any person who is convicted of a violation of the  
19 provisions of this subsection shall be deemed guilty of a Class C1  
20 felony offense punishable by imprisonment as provided for in  
21 subsections B through E of Section 20L of this title, and a fine of  
22 not more than Five Thousand Dollars (\$5,000.00).

23 2. As used in this subsection, "great bodily injury" means  
24 bodily injury which creates a substantial risk of death or which

1 causes serious, permanent disfigurement or protracted loss or  
2 impairment of the function of any bodily member or organ.

3 SECTION 11. REPEALER 21 O.S. 2021, Section 540A, as  
4 amended by Section 1, Chapter 224, O.S.L. 2025 (21 O.S. Supp. 2025,  
5 Section 540A), is hereby repealed.

6 SECTION 12. AMENDATORY 21 O.S. 2021, Section 644, as  
7 last amended by Section 3, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
8 2025, Section 644), is amended to read as follows:

9 Section 644. A. Assault shall be punishable by imprisonment in  
10 a county jail not exceeding ninety (90) days, or by a fine not more  
11 than Five Hundred Dollars (\$500.00), or by both such fine and  
12 imprisonment.

13 B. Assault and battery shall be punishable by imprisonment in a  
14 county jail not exceeding six (6) months, or by a fine not more than  
15 One Thousand Dollars (\$1,000.00), or by both such fine and  
16 imprisonment.

17 C. Any person who commits any assault and battery against a  
18 current or former intimate partner or a family or household member  
19 as defined by Section 60.1 of Title 22 of the Oklahoma Statutes  
20 shall be guilty of domestic abuse. Upon conviction, the defendant  
21 shall be punished by imprisonment in the county jail for not more  
22 than one (1) year, or by a fine not exceeding Five Thousand Dollars  
23 (\$5,000.00), or by both such fine and imprisonment. Upon conviction  
24 for a second or subsequent offense, the person shall be guilty of a

1 Class B5 felony offense and shall be punished by imprisonment in the  
2 custody of the Department of Corrections for not more than four (4)  
3 years, or by a fine not exceeding Five Thousand Dollars (\$5,000.00),  
4 or by both such fine and imprisonment. The provisions of Section  
5 51.1 of this title shall apply to any second or subsequent offense.

6 D. 1. ~~Any person who, with intent to do bodily harm and~~  
7 ~~without justifiable or excusable cause, commits any assault,~~  
8 ~~battery, or assault and battery upon an intimate partner or a family~~  
9 ~~or household member as defined by Section 60.1 of Title 22 of the~~  
10 ~~Oklahoma Statutes with any sharp or dangerous weapon, upon~~  
11 ~~conviction, is guilty of domestic assault or domestic assault and~~  
12 ~~battery with a dangerous weapon which shall be a Class B3 felony~~  
13 ~~offense punishable by imprisonment in the custody of the Department~~  
14 ~~of Corrections not exceeding ten (10) years, or by imprisonment in a~~  
15 ~~county jail not exceeding one (1) year. The provisions of Section~~  
16 ~~51.1 of this title shall apply to any second or subsequent~~  
17 ~~conviction for a violation of this paragraph.~~

18 2. Any person who, with intent to do bodily harm and without  
19 such justifiable or excusable cause, ~~shoots~~ commits any assault and  
20 battery upon an intimate partner or a family or household member as  
21 defined by Section 60.1 of Title 22 of the Oklahoma Statutes by  
22 means of any deadly weapon or by such other means or force that is  
23 likely to produce death shall, upon conviction, be guilty of  
24 domestic assault and battery with a deadly weapon which shall be a

1 Class A3 felony offense punishable by imprisonment in the custody of  
2 the Department of Corrections not exceeding life. The provisions of  
3 Section 51.1 of this title shall apply to any second or subsequent  
4 conviction for a violation of this ~~paragraph~~ subsection.

5 E. 1. Any person convicted of domestic abuse committed against  
6 a pregnant woman with knowledge of the pregnancy shall be guilty of  
7 a Class B5 felony offense punishable by imprisonment in the custody  
8 of the Department of Corrections for not more than five (5) years.

9 2. Any person convicted of a second or subsequent offense of  
10 domestic abuse against a pregnant woman with knowledge of the  
11 pregnancy shall be guilty of a Class A3 felony offense punishable by  
12 imprisonment in the custody of the Department of Corrections for not  
13 less than ten (10) years.

14 3. Any person convicted of domestic abuse committed against a  
15 pregnant woman with knowledge of the pregnancy and a miscarriage  
16 occurs or injury to the unborn child occurs shall be guilty of a  
17 Class A1 felony offense punishable by imprisonment in the custody of  
18 the Department of Corrections for not less than twenty (20) years.

19 F. Any person convicted of domestic abuse as defined in  
20 subsection C of this section that results in great bodily injury to  
21 the victim shall be guilty of a Class B3 felony offense and punished  
22 by imprisonment in the custody of the Department of Corrections for  
23 not more than ten (10) years, or by imprisonment in the county jail  
24 for not more than one (1) year. The provisions of Section 51.1 of

1 this title shall apply to any second or subsequent conviction of a  
2 violation of this subsection.

3 G. Any person convicted of domestic abuse as defined in  
4 subsection C of this section that was committed in the presence of a  
5 child shall be punished by imprisonment in the county jail for not  
6 less than six (6) months nor more than one (1) year, or by a fine  
7 not exceeding Five Thousand Dollars (\$5,000.00), or by both such  
8 fine and imprisonment. Any person convicted of a second or  
9 subsequent domestic abuse as defined in subsection C of this section  
10 that was committed in the presence of a child shall be guilty of a  
11 Class B5 felony offense and shall be punished by imprisonment in the  
12 custody of the Department of Corrections for not less than one (1)  
13 year nor more than five (5) years, or by a fine not exceeding Seven  
14 Thousand Dollars (\$7,000.00), or by both such fine and imprisonment.  
15 The provisions of Section 51.1 of this title shall apply to any  
16 second or subsequent offense. For every conviction of a domestic  
17 abuse crime in violation of any provision of this section committed  
18 against an intimate partner or a family or household member as  
19 defined by Section 60.1 of Title 22 of the Oklahoma Statutes, the  
20 court shall:

21 1. Specifically order as a condition of a suspended or deferred  
22 sentence that a defendant ~~participate in counseling or~~ undergo  
23 treatment to bring about the cessation of domestic abuse as  
24 specified in paragraph 2 of this subsection;

2. a. The court shall require the defendant to complete an assessment and follow the recommendations of a batterers' intervention program to attend a fifty-two-week batterers' intervention program or a pilot batterers' intervention program, if available, certified by the Attorney General.

b. If the defendant ~~is ordered to participate~~ participates in a batterers' intervention program, the ~~order~~ program shall require the defendant to attend ~~the program~~ for a minimum of fifty-two (52) weeks, complete the program, and be evaluated before and after attendance of the program by program staff. Three unexcused absences in succession or seven unexcused absences in a period of fifty-two (52) weeks from any court-ordered batterers' intervention program shall be prima facie evidence of the violation of the conditions of probation for the district attorney to seek acceleration or revocation of any probation entered by the court.

c. To investigate the effectiveness of additional batterers' intervention models, the Attorney General, beginning February 1, 2026, may certify two pilot batterers' intervention programs for a period of thirty-six (36) months located in Oklahoma and Tulsa

Counties. Proposals for certification as a pilot batterers' intervention program may be approved only if made by an organization that was dually certified as a batterers' intervention program and a domestic violence and sexual assault program on or before January 1, 2025, or by an organization certified as a batterers' intervention program on or before January 1, 2025, pursuant to a written agreement with an organization certified as a domestic violence and sexual assault program on or before January 1, 2025. Treatment provided through a pilot batterers' intervention program shall be evidence-based and shall be a minimum of twenty-six (26) weeks' duration. Participation in a pilot batterers' intervention program shall be limited to fifty participants at any given time. Pilot batterers' intervention programs shall be self-funded, including any fees which may be charged to the participants; provided, however, state or federal funding may continue for domestic violence and sexual abuse programs.

d. The Office of the Attorney General shall promulgate rules for pilot batterers' intervention programs in consultation with domestic violence and batterers' intervention programs or advocacy organizations.

1       The Attorney General shall establish within his or her  
2       administrative rules a screening and referral process  
3       to review referrals to the pilot batterers'  
4       intervention programs; provided, however, individuals  
5       convicted of domestic abuse with a dangerous weapon or  
6       domestic abuse by strangulation shall not be eligible  
7       to participate in the pilot program. The Attorney  
8       General shall require reporting of data necessary for  
9       evaluation of the pilot programs. The pilot programs  
10       shall provide the Attorney General with annual updates  
11       and at the end of a pilot program term, a formal  
12       evaluation shall be done by a third party agreed upon  
13       by the Attorney General and the pilot program  
14       operator.

15       e. All participants in the pilot program shall be subject  
16       to a validated risk assessment conducted by a  
17       qualified professional. The results of the assessment  
18       shall be used to determine program placement based on  
19       the level of risk and individual circumstances.  
20       Participation in any shared or joint setting by both  
21       the survivor and the individual who has caused harm  
22       shall be prohibited under a pilot program. The  
23       Attorney General shall adopt rules to implement this



1           subparagraph, including standards for risk assessment  
2           tools and differentiated response models.

3       f.   The Attorney General may provide by rule for extension  
4           of no more than twenty-four (24) months beyond thirty-  
5           six (36) months of a pilot batterers' intervention  
6           program if recommended by the third-party evaluator.

7       g.   Pilot batterers' intervention programs shall:

8           (1)  prioritize survivors' well-being in every part of  
9           the pilot program including screening,  
10          participation, reporting, and evaluation,

11          (2)  ensure that batterers' intervention programs use  
12          appropriate intervention strategies to assist the  
13          batterer in fostering the appropriate skills to:

14           (a)  stop the violence committed by the batterer,

15           (b)  accept personal accountability for battering  
16           and personal responsibility for the decision  
17           to stop or not to stop battering, and

18           (c)  change the existing attitudes and beliefs of  
19           the batterer that support the coercive  
20           behavior of the batterer,

21          (3)  address all forms of battering,

22          (4)  be culturally informed and provide culturally  
23          appropriate services to all participants,

- 1           (5) provide services that are affordable and  
2           accessible for participants, including  
3           participants with disabilities and limited  
4           English proficiency,  
5           (6) provide a uniform standard for evaluating the  
6           performance of a batterers' intervention program,  
7           (7) be informed by evidence-based practice, research,  
8           and proven field experience, including risk  
9           assessment, that enhances victim safety,  
10          (8) foster local and statewide communication and  
11          interaction between and among batterers'  
12          intervention programs and victim advocacy  
13          programs, and  
14          (9) ensure that batterers' intervention programs  
15          operate as an integrated part of the wider  
16          community response to battering.

17       ~~b.~~ h. A program for anger management, couples counseling,  
18       or family and marital counseling shall not solely  
19       qualify for the counseling or treatment requirement  
20       for domestic abuse pursuant to this subsection. The  
21       counseling may be ordered in addition to counseling  
22       specifically for the treatment of domestic abuse or  
23       per evaluation as set forth below. If, after  
24       sufficient evaluation and attendance at required

1        ~~counseling~~ treatment sessions, the domestic violence  
2        treatment program or licensed professional determines  
3        that the defendant does not evaluate as a perpetrator  
4        of domestic violence or does evaluate as a perpetrator  
5        of domestic violence and should complete other  
6        programs of treatment simultaneously or prior to or  
7        subsequent to domestic violence treatment, including  
8        but not limited to programs related to the mental  
9        health, apparent substance or alcohol abuse or  
10       inability or refusal to manage anger, the defendant  
11       shall be ordered to complete the counseling as per the  
12       recommendations of the domestic violence treatment  
13       program or licensed professional;

- 14       3.     a.     The court shall set a review hearing no more than one  
15       hundred twenty (120) days after the defendant is  
16       ordered to participate in a domestic abuse counseling  
17       program or undergo treatment for domestic abuse to  
18       assure the attendance and compliance of the defendant  
19       with the provisions of this subsection and the  
20       domestic abuse counseling or treatment requirements.  
21       The court may ~~suspend~~ delay sentencing of the  
22       defendant until the defendant has presented proof to  
23       the court of enrollment in a program of treatment for  
24       domestic abuse by an individual licensed practitioner

1 or a domestic abuse treatment program certified by the  
2 Attorney General and attendance at weekly sessions of  
3 such program. Such proof shall be presented to the  
4 court by the defendant no later than one hundred  
5 twenty (120) days after the defendant is ordered to  
6 such counseling or treatment. At such time, the court  
7 may complete sentencing, beginning the period of the  
8 sentence from the date that proof of enrollment is  
9 presented to the court, and schedule reviews as  
10 required by subparagraphs a and b of this paragraph  
11 and paragraphs 4 and 5 of this subsection. Three  
12 unexcused absences in succession or seven unexcused  
13 absences in a period of fifty-two (52) weeks from any  
14 court-ordered domestic abuse counseling or treatment  
15 program shall be prima facie evidence of the violation  
16 of the conditions of probation for the district  
17 attorney to seek acceleration or revocation of any  
18 probation entered by the court.

19 b. The court shall set a second review hearing after the  
20 completion of the counseling or treatment to assure  
21 the attendance and compliance of the defendant with  
22 the provisions of this subsection and the domestic  
23 abuse counseling or treatment requirements. The court  
24 shall retain continuing jurisdiction over the

1           defendant during the course of ordered counseling  
2           through the final review hearing;

3           4. The court may set subsequent or other review hearings as the  
4 court determines necessary to assure the defendant attends and fully  
5 complies with the provisions of this subsection and the domestic  
6 abuse counseling or treatment requirements;

7           5. At any review hearing, if the defendant is not  
8 satisfactorily attending individual counseling or a domestic abuse  
9 counseling or treatment program or is not in compliance with any  
10 domestic abuse counseling or treatment requirements, the court may  
11 order the defendant to further or continue counseling, treatment, or  
12 other necessary services. The court may revoke all or any part of a  
13 suspended sentence, deferred sentence, or probation pursuant to  
14 Section 991b of Title 22 of the Oklahoma Statutes and subject the  
15 defendant to any or all remaining portions of the original sentence;

16           6. At the first review hearing, the court shall require the  
17 defendant to appear in court. Thereafter, for any subsequent review  
18 hearings, the court may accept a report on the progress of the  
19 defendant from individual counseling, domestic abuse counseling, or  
20 the treatment program. There shall be no requirement for the victim  
21 to attend review hearings; and

22           7. If funding is available, a referee may be appointed and  
23 assigned by the presiding judge of the district court to hear  
24 designated cases set for review under this subsection. Reasonable

1 compensation for the referees shall be fixed by the presiding judge.  
2 The referee shall meet the requirements and perform all duties in  
3 the same manner and procedure as set forth in Sections 1-8-103 and  
4 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees  
5 appointed in juvenile proceedings.

6 The defendant may be required to pay all or part of the cost of  
7 the counseling or treatment, in the discretion of the court.

8 H. As used in subsection G of this section, "in the presence of  
9 a child" means in the physical presence of a child; or having  
10 knowledge that a child is present and may see or hear an act of  
11 domestic violence. For the purposes of subsections C and G of this  
12 section, "child" may be any child whether or not related to the  
13 victim or the defendant.

14 I. For the purposes of subsections C and G of this section, any  
15 conviction for assault and battery against an intimate partner or a  
16 family or household member as defined by Section 60.1 of Title 22 of  
17 the Oklahoma Statutes shall constitute a sufficient basis for a  
18 felony charge:

19 1. If that conviction is rendered in any state, county or  
20 parish court of record of this or any other state; or

21 2. If that conviction is rendered in any municipal court of  
22 record of this or any other state for which any jail time was  
23 served; provided, no conviction in a municipal court of record  
24

1 entered prior to November 1, 1997, shall constitute a prior  
2 conviction for purposes of a felony charge.

3 J. Any person who commits any assault and battery by  
4 strangulation or attempted strangulation against an intimate partner  
5 or a family or household member as defined by Section 60.1 of Title  
6 22 of the Oklahoma Statutes shall, upon conviction, be guilty of a  
7 Class B5 felony offense of domestic abuse by strangulation and shall  
8 be punished by imprisonment in the custody of the Department of  
9 Corrections for a period not less than one (1) year nor more than  
10 ten (10) years, or by a fine not more than Twenty Thousand Dollars  
11 (\$20,000.00), or by both such fine and imprisonment. The provisions  
12 of Section 51.1 of this title shall apply to any second or  
13 subsequent conviction of a violation of this subsection. As used in  
14 this subsection, "strangulation" means any form of asphyxia;  
15 including, but not limited to, asphyxia characterized by closure of  
16 the blood vessels or air passages of the neck as a result of  
17 external pressure on the neck or the closure of the nostrils or  
18 mouth as a result of external pressure on the head.

19 K. Any district court of this state and any judge thereof shall  
20 be immune from any liability or prosecution for issuing an order  
21 that requires a defendant to:

22 1. Attend a treatment program for domestic abusers certified by  
23 the Attorney General;

24

1        2. Attend counseling or treatment services ordered as part of  
2 any suspended or deferred sentence or probation; and

3        3. Attend, complete, and be evaluated before and after  
4 attendance by a treatment program for domestic abusers, certified by  
5 the Attorney General.

6        L. There shall be no charge of fees or costs to any victim of  
7 domestic violence, stalking, or sexual assault in connection with  
8 the prosecution of a domestic violence, stalking, or sexual assault  
9 offense in this state.

10       M. In the course of prosecuting any charge of domestic abuse,  
11 stalking, harassment, rape, or violation of a protective order, the  
12 prosecutor shall provide the court, prior to sentencing or any plea  
13 agreement, a local history and any other available history of past  
14 convictions of the defendant within the last ten (10) years relating  
15 to domestic abuse, stalking, harassment, rape, violation of a  
16 protective order, or any other violent misdemeanor or felony  
17 convictions.

18       N. Any plea of guilty or finding of guilt for a violation of  
19 subsection C, F, G, I or J of this section shall constitute a  
20 conviction of the offense for the purpose of this act or any other  
21 criminal statute under which the existence of a prior conviction is  
22 relevant for a period of ten (10) years following the completion of  
23 any court imposed probationary term; provided, the person has not,  
24



1 in the meantime, been convicted of a misdemeanor involving moral  
2 turpitude or a felony.

3 O. For purposes of subsection F of this section, "great bodily  
4 injury" means bone fracture, protracted and obvious disfigurement,  
5 protracted loss or impairment of the function of a body part, organ  
6 or mental faculty, or substantial risk of death.

7 P. Any pleas of guilty or nolo contendere or finding of guilt  
8 to a violation of any provision of this section shall constitute a  
9 conviction of the offense for the purpose of any subsection of this  
10 section under which the existence of a prior conviction is relevant  
11 for a period of ten (10) years following the completion of any  
12 sentence or court imposed probationary term.

13 SECTION 13. REPEALER 21 O.S. 2021, Section 644, as last  
14 amended by Section 1, Chapter 147, O.S.L. 2025 (21 O.S. Supp. 2025,  
15 Section 644), is hereby repealed.

16 SECTION 14. REPEALER 21 O.S. 2021, Section 644, as last  
17 amended by Section 1, Chapter 322, O.S.L. 2025 (21 O.S. Supp. 2025,  
18 Section 644), is hereby repealed.

19 SECTION 15. REPEALER 21 O.S. 2021, Section 644, as last  
20 amended by Section 2, Chapter 162, O.S.L. 2025 (21 O.S. Supp. 2025,  
21 Section 644), is hereby repealed.

22 SECTION 16. AMENDATORY 21 O.S. 2021, Section 650, as  
23 amended by Section 16, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,  
24 Section 650), is amended to read as follows:

1       Section 650. A. Every person who, without justifiable or  
2 excusable cause, knowingly commits any aggravated assault and  
3 battery upon the person of a police officer, sheriff, deputy sheriff  
4 or highway patrolman, corrections personnel as defined in Section  
5 649 of this title, or any state peace officer employed by any state  
6 or federal governmental agency to enforce state laws, while the  
7 officer is in the performance of his or her duties shall, upon  
8 conviction ~~thereof~~, be guilty of a Class A3 felony offense, ~~which~~  
9 ~~shall be~~ punishable by imprisonment in the custody of the Department  
10 of Corrections for not more than life ~~or by~~, a fine not exceeding  
11 One Thousand Dollars (\$1,000.00), or by both such fine and  
12 imprisonment.

13       B. Every person who, without justifiable or excusable cause,  
14 commits any aggravated assault and battery upon a person that the  
15 violator knows or should reasonably know is a police officer,  
16 sheriff, deputy sheriff ~~or~~, highway patrolman, corrections personnel  
17 as defined in Section 649 of this title, or any state peace officer  
18 employed by any state or federal governmental agency to enforce  
19 state laws, that results in maiming as defined in Section 751 of  
20 this title, while the officer is in the performance of his or her  
21 duties shall, upon conviction, be guilty of a Class A2 felony  
22 offense punishable by imprisonment in the custody of the Department  
23 of Corrections ~~of~~ for not less than five (5) years nor more than  
24

1 life, or by a fine not exceeding Five Thousand Dollars (\$5,000.00),  
2 or by both such fine and imprisonment.

3 C. For purposes of this section, aggravated assault and battery  
4 upon law officers includes ~~the~~:

5 1. The physical contact with and ~~in~~ an attempt to gain control  
6 of the firearm; or

7 2. The strangulation,  
8 of any police officer, sheriff, deputy sheriff, highway patrolman,  
9 corrections personnel as defined in Section 649 of this title, or  
10 any peace officer employed by any state or federal governmental  
11 agency to enforce state laws. As used in this subsection,  
12 "strangulation" shall have the same meaning as provided in  
13 subsection J of Section 644 of this title.

14 D. This section shall not supersede any other act or acts, but  
15 shall be cumulative thereto.

16 SECTION 17. REPEALER 21 O.S. 2021, Section 650, as  
17 amended by Section 1, Chapter 32, O.S.L. 2025 (21 O.S. Supp. 2025,  
18 Section 650), is hereby repealed.

19 SECTION 18. AMENDATORY 21 O.S. 2021, Section 748, as  
20 last amended by Section 20, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
21 2025, Section 748), is amended to read as follows:

22 Section 748. A. As used in Sections 748 and 748.2 of this  
23 title:  
24

1        1. "Coercion" means compelling, forcing or intimidating a  
2 person to act by:

3            a. threats of harm or physical restraint against any  
4            person,

5            b. any act, scheme, plan, or pattern intended to cause a  
6            person to believe that performing, or failing to  
7            perform, an act would result in serious physical,  
8            financial, or emotional harm or distress to or  
9            physical restraint against any person,

10           c. the abuse or threatened abuse of the law or legal  
11           process,

12           d. knowingly destroying, concealing, removing,  
13           confiscating or possessing any actual or purported  
14           passport, labor or immigration document, or other  
15           government identification document, including but not  
16           limited to a driver license or birth certificate, of  
17           another person,

18           e. facilitating or controlling a person's access to any  
19           addictive or controlled substance other than for legal  
20           medical purposes,

21           f. blackmail,

22           g. demanding or claiming money, goods, or any other thing  
23           of value from or on behalf of a prostituted person  
24

1           where such demand or claim arises from or is directly  
2           related to the act of prostitution,

3           h.   determining, dictating or setting the times at which  
4           another person will be available to engage in an act  
5           of prostitution with a third party,

6           i.   determining, dictating or setting the places at which  
7           another person will be available for solicitation of,  
8           or to engage in, an act of prostitution with a third  
9           party, or

10          j.   determining, dictating or setting the places at which  
11          another person will reside for purposes of making such  
12          person available to engage in an act of prostitution  
13          with a third party;

14          2.   "Commercial sex" means any form of commercial sexual  
15   activity such as sexually explicit performances, prostitution,  
16   participation in the production of pornography, performance in a  
17   strip club, or exotic dancing or display;

18          3.   "Debt bondage" means the status or condition of a debtor  
19   arising from a pledge by the debtor of his or her personal services  
20   or of those of a person under his or her control as a security for  
21   debt if the value of those services as reasonably assessed is not  
22   applied toward the liquidation of the debt or the length and nature  
23   of those services are not respectively limited and defined;

1       4. "Human trafficking" means modern-day slavery that includes,  
2 but is not limited to, extreme exploitation and the denial of  
3 freedom or liberty of an individual for purposes of deriving benefit  
4 from that individual's commercial sex act or labor;

5       5. "Human trafficking for labor" means:

6           a. recruiting, enticing, harboring, maintaining,  
7           transporting, providing or obtaining, by any means,  
8           another person through deception, force, fraud, threat  
9           or coercion or for purposes of engaging the person in  
10          labor, or

11          b. benefiting, financially or by receiving anything of  
12          value, from participation in a venture that has  
13          engaged in an act of trafficking for labor;

14       6. "Human trafficking for commercial sex" means:

15           a. recruiting, enticing, harboring, maintaining,  
16           transporting, providing or obtaining, by any means,  
17           another person through deception, force, fraud, threat  
18           or coercion for purposes of engaging the person in a  
19           commercial sex act,

20          b. recruiting, enticing, harboring, maintaining,  
21          transporting, providing, purchasing or obtaining, by  
22          any means, a minor for purposes of engaging the minor  
23          in a commercial sex act, or  
24

1           c.   benefiting, financially or by receiving anything of  
2               value, from participating in a venture that has  
3               engaged in an act of trafficking for commercial sex;

4       7. "Legal process" means the criminal law, the civil law, or  
5 the regulatory system of the federal government, any state,  
6 territory, district, commonwealth, or trust territory therein, and  
7 any foreign government or subdivision thereof and includes legal  
8 civil actions, criminal actions, and regulatory petitions or  
9 applications;

10      8. "Minor" means an individual under eighteen (18) years of  
11 age; and

12      9. "Victim" means a person against whom a violation of any  
13 provision of this section has been committed.

14      B. It shall be unlawful to knowingly engage in human  
15 trafficking.

16      C. 1. Any person violating the provisions of this section  
17 shall, upon conviction, be guilty of a Class A2 felony offense  
18 punishable by imprisonment in the custody of the Department of  
19 Corrections for a term of not less than five (5) years or for life,  
20 or by a fine of not more than One Hundred Thousand Dollars  
21 (\$100,000.00), or by both such fine and imprisonment.

22      2. Any person violating the provisions of this section where  
23 the victim of the offense is under eighteen (18) years of age at the  
24 time of the offense shall, upon conviction, be guilty of a Class A2

1 felony offense punishable by imprisonment in the custody of the  
2 Department of Corrections for a term of not less than ~~fifteen (15)~~  
3 ten (10) years or, for life, or for life without parole, or by a  
4 fine of not more than Two Hundred Fifty Thousand Dollars  
5 (\$250,000.00), or by both such fine and imprisonment.

6 3. The court shall also order the defendant to pay restitution  
7 to the victim as provided in Section 991f of Title 22 of the  
8 Oklahoma Statutes. In addition, the court shall require the  
9 defendant to pay for a psychological evaluation to determine the  
10 extent of counseling necessary for the human trafficking victim and  
11 any necessary psychological counseling deemed necessary to  
12 rehabilitate the victim. Such evaluations and counseling may be  
13 performed by psychiatrists, psychologists, licensed professional  
14 counselors, or social workers.

15 4. If the person is convicted of human trafficking, the person  
16 shall serve eighty-five percent (85%) of the sentence before being  
17 eligible for parole consideration or any earned credits. The terms  
18 of imprisonment specified in this subsection shall not be subject to  
19 statutory provisions for suspension, deferral or probation, or state  
20 correctional institution earned credits accruing from and after  
21 November 1, 1989, except for the achievement earned credits  
22 authorized by subsection H of Section 138 of Title 57 of the  
23 Oklahoma Statutes. To qualify for such achievement earned credits,  
24 such inmates must also be in compliance with the standards for Class



1 level 2 behavior, as defined in subsection D of Section 138 of Title  
2 57 of the Oklahoma Statutes.

3 D. It is an affirmative defense to prosecution for a criminal,  
4 youthful offender, or delinquent offense that, during the time of  
5 the alleged commission of the offense, the defendant or alleged  
6 youthful offender or delinquent was a victim of human trafficking.

7 E. The consent of a victim to the activity prohibited by this  
8 section shall not constitute a defense.

9 F. Lack of knowledge of the age of the victim shall not  
10 constitute a defense to the activity prohibited by this section with  
11 respect to human trafficking of a minor.

12 SECTION 19. REPEALER 21 O.S. 2021, Section 748, as last  
13 amended by Section 2, Chapter 291, O.S.L. 2025 (21 O.S. Supp. 2025,  
14 Section 748), is hereby repealed.

15 SECTION 20. AMENDATORY 21 O.S. 2021, Section 843.5, as  
16 last amended by Section 8, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
17 2025, Section 843.5), is amended to read as follows:

18 Section 843.5. A. Any person who shall willfully or  
19 maliciously engage in child abuse, as defined in this section,  
20 shall, upon conviction, be guilty of a Class A3 felony offense  
21 punishable by imprisonment in the custody of the Department of  
22 Corrections not exceeding life imprisonment, or by imprisonment in a  
23 county jail not exceeding one (1) year, or by a fine of not less  
24

1 than Five Hundred Dollars (\$500.00) nor more than Five Thousand  
2 Dollars (\$5,000.00), or both such fine and imprisonment.

3 B. Any person responsible for the health, safety or welfare of  
4 a child who shall willfully or maliciously engage in enabling child  
5 abuse, as defined in this section, shall, upon conviction, be guilty  
6 of a Class A3 felony offense and shall be punished by imprisonment  
7 in the custody of the Department of Corrections not exceeding life  
8 imprisonment, or by imprisonment in a county jail not exceeding one  
9 (1) year, or by a fine of not less than Five Hundred Dollars  
10 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both  
11 such fine and imprisonment.

12 C. Any person responsible for the health, safety or welfare of  
13 a child who shall willfully or maliciously engage in child neglect,  
14 as defined in this section, shall, upon conviction, be guilty of a  
15 Class B1 felony offense and shall be punished by imprisonment in the  
16 custody of the Department of Corrections not exceeding life  
17 imprisonment, or by imprisonment in a county jail not exceeding one  
18 (1) year, or by a fine of not less than Five Hundred Dollars  
19 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both  
20 such fine and imprisonment.

21 D. Any parent or other person who shall willfully or  
22 maliciously engage in enabling child neglect shall, upon conviction,  
23 be guilty of a Class B1 felony offense and shall be punished by  
24 imprisonment in the custody of the Department of Corrections not

1 exceeding life imprisonment, or by imprisonment in a county jail not  
2 exceeding one (1) year, or by a fine of not less than Five Hundred  
3 Dollars (\$500.00) nor more than Five Thousand Dollars (\$5,000.00),  
4 or both such fine and imprisonment.

5 E. Any person responsible for the health, safety or welfare of  
6 a child who shall willfully or maliciously engage in child sexual  
7 abuse, as defined in this section, shall, upon conviction, be guilty  
8 of a Class A3 felony offense and shall be punished by imprisonment  
9 in the custody of the Department of Corrections not exceeding life  
10 imprisonment, or by imprisonment in a county jail not exceeding one  
11 (1) year, or by a fine of not less than Five Hundred Dollars  
12 (\$500.00) nor more than Five Thousand Dollars (\$5,000.00), or both  
13 such fine and imprisonment, except as provided in Section 51.1a of  
14 this title or as otherwise provided in subsection F of this section  
15 for a child victim under twelve (12) years of age. Except for  
16 persons sentenced to life or life without parole, any person  
17 sentenced to imprisonment for two (2) years or more for a violation  
18 of this subsection shall be required to serve a term of post-  
19 imprisonment supervision pursuant to subparagraph f of paragraph 1  
20 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes  
21 under conditions determined by the Department of Corrections. The  
22 jury shall be advised that the mandatory post-imprisonment  
23 supervision shall be in addition to the actual imprisonment.

1 F. Any person responsible for the health, safety or welfare of  
2 a child who shall willfully or maliciously engage in child sexual  
3 abuse, as defined in this section, to a child under twelve (12)  
4 years of age shall, upon conviction, be guilty of a Class A1 felony  
5 offense and shall be punished by imprisonment in the custody of the  
6 Department of Corrections for not less than twenty-five (25) years  
7 nor more than life imprisonment, and by a fine of not less than Five  
8 Hundred Dollars (\$500.00) nor more than Five Thousand Dollars  
9 (\$5,000.00).

10 G. Any parent or other person who shall willfully or  
11 maliciously engage in enabling child sexual abuse shall, upon  
12 conviction, be guilty of a Class A3 felony offense and shall be  
13 punished by imprisonment in the custody of the Department of  
14 Corrections not exceeding life imprisonment, or by imprisonment in a  
15 county jail not exceeding one (1) year, or by a fine of not less  
16 than Five Hundred Dollars (\$500.00) nor more than Five Thousand  
17 Dollars (\$5,000.00), or both such fine and imprisonment.

18 H. Any person who shall willfully or maliciously engage in  
19 child sexual exploitation, as defined in this section, shall, upon  
20 conviction, be guilty of a Class A3 felony offense and shall be  
21 punished by imprisonment in the custody of the Department of  
22 Corrections not exceeding life imprisonment, or by imprisonment in a  
23 county jail not exceeding one (1) year, or by a fine of not less  
24 than Five Hundred Dollars (\$500.00) nor more than Five Thousand

1 Dollars (\$5,000.00), or both such fine and imprisonment, except as  
2 provided in subsection I of this section for a child victim under  
3 twelve (12) years of age. Except for persons sentenced to life or  
4 life without parole, any person sentenced to imprisonment for two  
5 (2) years or more for a violation of this subsection shall be  
6 required to serve a term of post-imprisonment supervision pursuant  
7 to subparagraph f of paragraph 1 of subsection A of Section 991a of  
8 Title 22 of the Oklahoma Statutes under conditions determined by the  
9 Department of Corrections. The jury shall be advised that the  
10 mandatory post-imprisonment supervision shall be in addition to the  
11 actual imprisonment.

12 I. Any person who shall willfully or maliciously engage in  
13 child sexual exploitation, as defined in this section, of a child  
14 under twelve (12) years of age shall, upon conviction, be guilty of  
15 a Class A1 felony offense and shall be punished by imprisonment in  
16 the custody of the Department of Corrections for not less than  
17 twenty-five (25) years nor more than life imprisonment, and by a  
18 fine of not less than Five Hundred Dollars (\$500.00) nor more than  
19 Five Thousand Dollars (\$5,000.00).

20 J. Any person responsible for the health, safety or welfare of  
21 a child who shall willfully or maliciously engage in enabling child  
22 sexual exploitation, as defined in this section, shall, upon  
23 conviction, be guilty of a Class A3 felony offense and shall be  
24 punished by imprisonment in the custody of the Department of

1 Corrections not exceeding life imprisonment, or by imprisonment in a  
2 county jail not exceeding one (1) year, or by a fine of not less  
3 than Five Hundred Dollars (\$500.00) nor more than Five Thousand  
4 Dollars (\$5,000.00), or both such fine and imprisonment.

5 K. ~~Notwithstanding~~ In addition to any other ~~provision of~~  
6 punishment prescribed by law, any person convicted of forcible anal  
7 or oral sodomy, rape, or rape by instrumentation, ~~or lewd~~  
8 ~~molestation~~ of a child under fourteen (14) years of age ~~subsequent~~  
9 ~~to a previous conviction for any offense of forcible anal or oral~~  
10 ~~sodomy, rape, rape by instrumentation, or lewd molestation of a~~  
11 ~~child under fourteen (14) years of age~~ shall be guilty of a Class A1  
12 felony offense and shall be ~~punished~~ eligible for punishment by  
13 death or by imprisonment for life without parole.

14 L. Provided, however, that nothing contained in this section  
15 shall prohibit any parent or guardian from using reasonable and  
16 ordinary force pursuant to Section 844 of this title.

17 M. Consent shall not be a defense for any violation provided  
18 for in this section.

19 N. Notwithstanding the age requirements of other statutes  
20 referenced within this section, this section shall apply to any  
21 child under eighteen (18) years of age.

22 O. As used in this section:

23 1. "Child abuse" means:  
24

- a. the willful or malicious harm or threatened harm or failure to protect from harm or threatened harm to the health, safety or welfare of a child under eighteen (18) years of age by a person responsible for a child's health, safety or welfare, or
- b. the act of willfully or maliciously injuring, torturing or maiming a child under eighteen (18) years of age by any person;

2. "Child neglect" means the willful or malicious neglect, as defined by Section 1-1-105 of Title 10A of the Oklahoma Statutes, of a child under eighteen (18) years of age by a person responsible for a child's health, safety or welfare;

3. "Child sexual abuse" means the willful or malicious sexual abuse of a child under eighteen (18) years of age by a person responsible for a child's health, safety or welfare and includes, but is not limited to:

- a. sexual intercourse,
- b. penetration of the vagina or anus, however slight, by an inanimate object or any part of the human body not amounting to sexual intercourse,
- c. sodomy,
- d. incest, or
- e. a lewd act or proposal, as defined in this section;

1        4. "Child sexual exploitation" means the willful or malicious  
2 sexual exploitation of a child under eighteen (18) years of age by  
3 another and includes, but is not limited to:

- 4            a. human trafficking, as provided for in Section 748 of  
5                this title, if the offense involved child trafficking  
6                for commercial sex,
- 7            b. trafficking in children, as provided for in Section  
8                866 of this title, if the offense was committed for  
9                the sexual gratification of any person,
- 10           c. procuring or causing the participation of a minor in  
11                child ~~pornography~~ sexual abuse material, as provided  
12                for in Section 1021.2 of this title,
- 13           d. purchase, procurement or possession of child  
14                ~~pornography~~ sexual abuse material, as provided for in  
15                Section 1024.2 of this title,
- 16           e. engaging in or soliciting prostitution, as provided  
17                for in Section 1029 of this title, if the offense  
18                involved child sex trafficking,
- 19           f. publication, distribution or participation in the  
20                preparation of obscene material, as provided for in  
21                Section 1040.8 of this title, if the offense involved  
22                child ~~pornography~~ sexual abuse material,



- 1           g.    aggravated possession of child ~~pornography~~ sexual  
2               abuse material, as provided for in Section 1040.12a of  
3               this title,  
4           h.    sale or distribution of obscene material, as provided  
5               for in Section 1040.13 of this title,  
6           i.    soliciting sexual conduct or communication with a  
7               minor by use of technology, as provided for in Section  
8               1040.13a of this title,  
9           j.    offering or transporting a child for purposes of child  
10              sex trafficking, as provided for in Section 1087 of  
11              this title, and  
12           k.    child sex trafficking, as provided for in Section 1088  
13              of this title;

14        5.    "Enabling child abuse" means the causing, procuring or  
15    permitting of child abuse by a person responsible for a child's  
16    health, safety or welfare;

17        6.    "Enabling child neglect" means the causing, procuring or  
18    permitting of child neglect by a person responsible for a child's  
19    health, safety or welfare;

20        7.    "Enabling child sexual abuse" means the causing, procuring  
21    or permitting of child sexual abuse by a person responsible for a  
22    child's health, safety or welfare;  
23  
24

1        8. "Enabling child sexual exploitation" means the causing,  
2        procuring or permitting of child sexual exploitation by a person  
3        responsible for a child's health, safety or welfare;

4        9. "Incest" means marrying, committing adultery or fornicating  
5        with a child by a person responsible for the health, safety or  
6        welfare of a child;

7        10. "Lewd act or proposal" means:

- 8            a.    making any oral, written or electronic or computer-  
9                    generated lewd or indecent proposal to a child for the  
10                  child to have unlawful sexual relations or sexual  
11                  intercourse with any person,
- 12           b.    looking upon, touching, mauling or feeling the body or  
13                  private parts of a child in a lewd or lascivious  
14                  manner or for the purpose of sexual gratification,
- 15           c.    asking, inviting, enticing or persuading any child to  
16                  go alone with any person to a secluded, remote or  
17                  secret place for a lewd or lascivious purpose,
- 18           d.    urinating or defecating upon a child or causing,  
19                  forcing or requiring a child to defecate or urinate  
20                  upon the body or private parts of another person for  
21                  the purpose of sexual gratification,
- 22           e.    ejaculating upon or in the presence of a child,

- f. causing, exposing, forcing or requiring a child to look upon the body or private parts of another person for the purpose of sexual gratification,
- g. causing, forcing or requiring any child to view any obscene materials, child ~~pornography~~ sexual abuse material or materials deemed harmful to minors as such terms are defined in Sections 1024.1 and 1040.75 of this title,
- h. causing, exposing, forcing or requiring a child to look upon sexual acts performed in the presence of the child for the purpose of sexual gratification, or
- i. causing, forcing or requiring a child to touch or feel the body or private parts of the child or another person for the purpose of sexual gratification;

11. "Permit" means to authorize or allow for the care of a child by an individual when the person authorizing or allowing such care knows or reasonably should know that the child will be placed at risk of the conduct or harm proscribed by this section;

12. "Person responsible for a child's health, safety or welfare" for purposes of this section shall include, but not be limited to:

- a. the parent of the child,
- b. the legal guardian of the child,
- c. the custodian of the child,

- d. the foster parent of the child,
- e. a person eighteen (18) years of age or older with whom the parent of the child cohabitates, who is at least three (3) years older than the child,
- f. any other person eighteen (18) years of age or older residing in the home of the child, who is at least three (3) years older than the child,
- g. an owner, operator, agent, employee or volunteer of a public or private residential home, institution, facility or day treatment program, as defined in Section 175.20 of Title 10 of the Oklahoma Statutes, that the child attended,
- h. an owner, operator, agent, employee or volunteer of a child care facility, as defined in Section 402 of Title 10 of the Oklahoma Statutes, that the child attended,
- i. an intimate partner of the parent of the child, as defined in Section 60.1 of Title 22 of the Oklahoma Statutes, or
- j. a person who has voluntarily accepted responsibility for the care or supervision of a child;

13. "Sexual intercourse" means the actual penetration, however slight, of the vagina or anus by the penis; and

14. "Sodomy" means:

- a. penetration, however slight, of the mouth of the child by a penis,
- b. penetration, however slight, of the vagina of a person responsible for a child's health, safety or welfare, by the mouth of a child,
- c. penetration, however slight, of the mouth of the person responsible for a child's health, safety or welfare by the penis of the child, or
- d. penetration, however slight, of the vagina of the child by the mouth of the person responsible for a child's health, safety or welfare.

SECTION 21. REPEALER 21 O.S. 2021, Section 843.5, as amended by Section 6, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025, Section 843.5), is hereby repealed.

SECTION 22. REPEALER 21 O.S. 2021, Section 843.5, as last amended by Section 1, Chapter 281, O.S.L. 2025 (21 O.S. Supp. 2025, Section 843.5), is hereby repealed.

SECTION 23. AMENDATORY 21 O.S. 2021, Section 852.1, as amended by Section 187, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 852.1), is amended to read as follows:

Section 852.1. A. A person who is the parent, guardian, or person having custody or control over a child as defined in Section 1-1-105 of Title 10A of the Oklahoma Statutes, commits child endangerment when the person:

1        1. Knowingly permits physical or sexual abuse of a child;

2        2. Knowingly permits a child to be present at a location where  
3 a controlled dangerous substance is being manufactured or attempted  
4 to be manufactured as defined in Section 2-101 of Title 63 of the  
5 Oklahoma Statutes;

6        3. Knowingly permits a child to be present in a vehicle when  
7 the person knows or should have known that the operator of the  
8 vehicle is impaired by or is under the influence of alcohol or  
9 another intoxicating substance; or

10       4. Is the driver, operator, or person in physical control of a  
11 vehicle in violation of Section 11-902 of Title 47 of the Oklahoma  
12 Statutes or impaired while transporting or having in the vehicle  
13 such child or children.

14       However, it is an affirmative defense to this paragraph if the  
15 person had a reasonable apprehension that any action to stop the  
16 physical or sexual abuse or deny permission for the child to be in  
17 the vehicle with an intoxicated person would result in substantial  
18 bodily harm to the person or the child.

19       Nothing in this subsection shall prohibit the prosecution of a  
20 person pursuant to the provisions of Section 11-902 or 11-904 of  
21 Title 47 of the Oklahoma Statutes.

22       B. The provisions of this section shall not apply to any  
23 parent, guardian or other person having custody or control of a  
24 child for the sole reason that the parent, guardian or other person

1 in good faith selects and depends upon spiritual means or prayer for  
2 the treatment or cure of disease or remedial care for such child.  
3 This subsection shall in no way limit or modify the protections  
4 afforded said child in Section 852 of this title or Section 1-4-904  
5 of Title 10A of the Oklahoma Statutes.

6 C. Any person convicted of violating any provision of this  
7 section shall be guilty of a Class B6 felony offense punishable by  
8 imprisonment in the custody of the Department of Corrections for a  
9 term of not more than four (4) years, or by a fine not exceeding  
10 Five Thousand Dollars (\$5,000.00), or by both such fine and  
11 imprisonment.

12 SECTION 24. REPEALER 21 O.S. 2021, Section 852.1, as  
13 amended by Section 1, Chapter 113, O.S.L. 2025 (21 O.S. Supp. 2025,  
14 Section 852.1), is hereby repealed.

15 SECTION 25. AMENDATORY 21 O.S. 2021, Section 856.3, as  
16 amended by Section 159, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
17 2025, Section 856.3), is amended to read as follows:

18 Section 856.3. Any person who attempts or commits a gang-  
19 related offense as a condition of membership in a criminal street  
20 gang or while in association with any criminal street gang or gang  
21 member shall be guilty of a Class B5 felony offense. ~~Upon~~  
22 punishable upon conviction, ~~the violator shall be punished by~~  
23 ~~incarceration~~ imprisonment in the custody of the Department of  
24 Corrections for a term of five (5) years, which shall be in addition

1 to any other penalty imposed. For purposes of this section,  
2 "criminal street gang" is defined by subsection F of Section 856 of  
3 ~~Title 21 of the Oklahoma Statutes~~ this title and "gang-related  
4 offense" means those offenses enumerated in ~~paragraphs 1 through 16~~  
5 ~~of subsection F of Section 856 of Title 21 of the Oklahoma Statutes~~  
6 this title.

7 SECTION 26. REPEALER 21 O.S. 2021, Section 856.3, as  
8 amended by Section 1, Chapter 108, O.S.L. 2025 (21 O.S. Supp. 2025,  
9 Section 856.3), is hereby repealed.

10 SECTION 27. REPEALER 21 O.S. 2021, Section 888, as  
11 amended by Section 4, Chapter 455, O.S.L. 2002, is hereby repealed.

12 SECTION 28. AMENDATORY 21 O.S. 2021, Section 1021.2, as  
13 last amended by Section 49, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
14 2025, Section 1021.2), is amended to read as follows:

15 Section 1021.2. A. Any person who shall procure or cause the  
16 participation of any minor under the age of eighteen (18) years in  
17 any child ~~pornography~~ sexual abuse material or obscene material or  
18 who knowingly possesses, views, accesses, shares, streams,  
19 downloads, procures, sells, distributes, or manufactures, or causes  
20 to be possessed, viewed, accessed, shared, streamed, downloaded,  
21 procured, sold, distributed, or manufactured any child ~~pornography~~  
22 sexual abuse material shall, upon conviction, be guilty of a Class  
23 B1 felony offense and shall be punished by imprisonment in the  
24 custody of the Department of Corrections for not more than twenty



1 (20) years and by the imposition of a fine of not more than Twenty-  
2 five Thousand Dollars (\$25,000.00). Persons convicted under this  
3 section shall not be eligible for a deferred sentence. Except for  
4 persons sentenced to life or life without parole, any person  
5 sentenced to imprisonment for two (2) years or more for a violation  
6 of this subsection shall be required to serve a term of post-  
7 imprisonment supervision pursuant to subparagraph f of paragraph 1  
8 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes  
9 under conditions determined by the Department of Corrections. The  
10 jury shall be advised that the mandatory post-imprisonment  
11 supervision shall be in addition to the actual imprisonment.

12 B. The consent of the minor, or of the mother, father, legal  
13 guardian, or custodian of the minor to the activity prohibited by  
14 this section shall not constitute a defense.

15 SECTION 29. REPEALER 21 O.S. 2021, Section 1021.2, as  
16 amended by Section 9, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,  
17 Section 1021.2), is hereby repealed.

18 SECTION 30. AMENDATORY 21 O.S. 2021, Section 1024.1, as  
19 last amended by Section 4, Chapter 29, O.S.L. 2025 (21 O.S. Supp.  
20 2025, Section 1024.1), is amended to read as follows:

21 Section 1024.1. A. As used in Sections 1021, 1021.1 through  
22 1021.4, Sections 1022, 1023, and Sections 1040.8 through 1040.24 of  
23 this title, "child sexual abuse material" means:  
24

1        1. Any visual depiction of a child engaged in any act of  
2 sexually explicit conduct;

3        2. Any visual depiction of a child that has been adapted,  
4 altered, or modified so that the child depicted appears to be  
5 engaged in any act of sexually explicit conduct; or

6        3. Any visual depiction that appears to be a child, regardless  
7 of whether the image is a depiction of an actual child, a computer-  
8 generated image, or an image altered to appear to be a child,  
9 engaged in any act of sexually explicit conduct, and such visual  
10 depiction is obscene.

11        B. Each visual depiction or individual image of child  
12 ~~pornography~~ sexual abuse material shall constitute a separate item  
13 and act.

14        C. As used in Sections 1021 through 1024.4 and Sections 1040.8  
15 through 1040.24 of this title:

16        1. "Child" means a person under eighteen (18) years of age;

17        2. "Obscene" means any performance or depiction, in any form or  
18 on any medium, if the material when taken as a whole:

19            a. appeals to the prurient interest in sex as determined  
20 by the average person applying the contemporary  
21 standards of their community,

22            b. depicts, represents, or displays sexually explicit  
23 conduct in a patently offensive way, and  
24

1           c.    a reasonable person would find the material or  
2                   performance lacks serious literary, artistic,  
3                   educational, political, or scientific value;

4           3.    "Performance" means any display, live, recorded, or  
5 transmitted, in any form or medium;

6           4.    "Sexually explicit conduct" means any of the following  
7 whether actual or simulated:

8           a.    acts of sexual intercourse,

9           b.    acts of oral and anal sodomy,

10          c.    acts of masturbation,

11          d.    acts of sexual activity with an animal,

12          e.    acts of sadomasochism including:

13               (1)  flagellation or torture by or upon any person who  
14                   is nude or clad in undergarments or in a costume  
15                   which is of a revealing nature, or

16               (2)  the condition of being fettered, bound, or  
17                   otherwise physically restrained on the part of  
18                   one who is nude or so clothed,

19          f.    acts of excretion in a sexual context, or

20          g.    exhibiting genitalia, breast, or pubic area for the  
21               purpose of the sexual stimulation of the viewer;

22           5.    "Explicit child sexual abuse material" means material which  
23 a law enforcement officer can immediately identify as child sexual  
24 abuse material; and

1        6. "Visual depiction" means any depiction, picture, movie,  
2 performance, or image displayed, stored, shared, or transmitted in  
3 any format and on any medium including data that is capable of being  
4 converted into a depiction, picture, movie, performance, or image.

5        SECTION 31.        REPEALER        21 O.S. 2021, Section 1024.1, as  
6 amended by Section 14, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,  
7 Section 1024.1), is hereby repealed.

8        SECTION 32.        AMENDATORY        21 O.S. 2021, Section 1031, as  
9 last amended by Section 397, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
10 2025, Section 1031), is amended to read as follows:

11        Section 1031. A. Except as provided in subsection B, C, D, or  
12 E of this section, any person violating any of the provisions of  
13 paragraph 1, 2, 3, or 5 of subsection A of Section 1029 or Section  
14 1030 of this title shall, upon conviction, be guilty of a  
15 misdemeanor and shall be punished by imprisonment in the county jail  
16 for not less than thirty (30) days nor more than one (1) year or by  
17 fines as follows: a fine not more than Two Thousand Five Hundred  
18 Dollars (\$2,500.00) upon the first conviction for violation of any  
19 of such provisions, a fine not more than Five Thousand Dollars  
20 (\$5,000.00) upon the second conviction for violation of any of such  
21 provisions, and a fine not more than Seven Thousand Five Hundred  
22 Dollars (\$7,500.00) upon the third or subsequent convictions for  
23 violation of any of such provisions, or by both such imprisonment  
24 and fine. In addition, the court may require a term of community

1 service not less than forty (40) nor more than eighty (80) hours.

2 The court in which any such conviction is had shall notify the  
3 county superintendent of public health of such conviction.

4 B. Any person who engages in an act of prostitution with  
5 knowledge that he or she is infected with the human immunodeficiency  
6 virus shall, upon conviction, be guilty of a Class D1 felony offense  
7 punishable by imprisonment as provided for in subsections B through  
8 F of Section 20N of this title.

9 C. Any person who engages in an act of child ~~prostitution~~ sex  
10 trafficking as defined in Section 1030 of this title shall, upon  
11 conviction, be guilty of a Class B1 felony offense punishable by  
12 imprisonment in the custody of the Department of Corrections for not  
13 more than ten (10) years and by fines as follows: a fine not more  
14 than Five Thousand Dollars (\$5,000.00) upon the first conviction, a  
15 fine not more than Ten Thousand Dollars (\$10,000.00) upon the second  
16 conviction, and a fine not more than Fifteen Thousand Dollars  
17 (\$15,000.00) upon the third or subsequent convictions.

18 D. Any person violating any of the provisions of Section 1029  
19 or 1030 of this title within one thousand (1,000) feet of a school  
20 or church shall, upon conviction, be guilty of a Class D1 felony  
21 offense and shall be punished by imprisonment as provided for in  
22 subsections B through F of Section 20N of this title, or by fines as  
23 follows: a fine not more than Two Thousand Five Hundred Dollars  
24 (\$2,500.00) upon the first conviction for violation of any of such

1 provisions, a fine not more than Five Thousand Dollars (\$5,000.00)  
2 upon the second conviction for violation of any of such provisions,  
3 and a fine not more than Seven Thousand Five Hundred Dollars  
4 (\$7,500.00) upon the third or subsequent convictions for violation  
5 of any of such provisions, or by both such imprisonment and fine.  
6 In addition, the court may require a term of community service not  
7 less than forty (40) nor more than eighty (80) hours. The court in  
8 which any such conviction is had shall notify the county  
9 superintendent of public health of such conviction.

10 E. Any person violating paragraph 4 of subsection A of Section  
11 1029 of this title shall, upon conviction, be guilty of a Class B4  
12 felony offense and shall be punished in accordance with the  
13 provisions of subsection B of Section 1040.57 of this title.

14 SECTION 33. REPEALER 21 O.S. 2021, Section 1031, as last  
15 amended by Section 5, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2025,  
16 Section 1031), is hereby repealed.

17 SECTION 34. AMENDATORY 21 O.S. 2021, Section 1040.12a,  
18 as last amended by Section 26, Chapter 486, O.S.L. 2025 (21 O.S.  
19 Supp. 2025, Section 1040.12a), is amended to read as follows:

20 Section 1040.12a. A. Any person who, with knowledge of its  
21 contents, possesses one hundred (100) or more separate visual  
22 depictions of child ~~pornography~~ sexual abuse material shall, upon  
23 conviction, be guilty of aggravated possession of child ~~pornography~~  
24 sexual abuse material, a Class A2 felony offense. The violator

1 shall be punished by imprisonment in the custody of the Department  
2 of Corrections for a term not exceeding life imprisonment and by a  
3 fine in an amount of not more than Ten Thousand Dollars  
4 (\$10,000.00). The violator, upon conviction, shall be required to  
5 register as a sex offender under the Sex Offenders Registration Act.

6 B. For purposes of this section:

7 1. Multiple copies of the same identical material shall each be  
8 counted as a separate item; and

9 2. The terms "~~child pornography~~" sexual abuse material" and  
10 "visual depictions" mean the same definitions provided by Section  
11 1024.1 of this title.

12 SECTION 35. REPEALER 21 O.S. 2021, Section 1040.12a, as  
13 amended by Section 20, Chapter 59, O.S.L. 2024 (21 O.S. Supp. 2025,  
14 Section 1040.12a), is hereby repealed.

15 SECTION 36. REPEALER 21 O.S. 2021, Section 1040.12a, as  
16 last amended by Section 3, Chapter 29, O.S.L. 2025 (21 O.S. Supp.  
17 2025, Section 1040.12a), is hereby repealed.

18 SECTION 37. AMENDATORY 21 O.S. 2021, Section 1040.13b,  
19 as last amended by Section 1, Chapter 23, O.S.L. 2025 (21 O.S. Supp.  
20 2025, Section 1040.13b), is amended to read as follows:

21 Section 1040.13b. A. As used in this section:

22 1. "Artificial intelligence" means a machine-based system that  
23 can, for a given set of human-defined objectives, make predictions,  
24

1 recommendations, or decisions influencing real or virtual  
2 environments, including the ability to:

- 3           a.    perceive real and virtual environments,
- 4           b.    abstract perceptions made under this paragraph into  
5               models through analysis in an automated manner, and
- 6           c.    use model inference to formulate options for  
7               information or action based on outcomes under  
8               subparagraphs a and b of this paragraph.

9 The term includes generative artificial intelligence;

10       2.    "Artificially generated sexual depiction" means a visual  
11 depiction:

- 12           a.    that appears to authentically depict an individual in  
13               a state of nudity or engaged in sexual conduct that  
14               did not occur in reality, and
- 15           b.    the production of which was substantially dependent  
16               upon technical means, including artificial  
17               intelligence or photo editing software, rather than  
18               the ability of another person to physically  
19               impersonate the other person;

20       3.    "Generative artificial intelligence" means the class of  
21 models that emulate the structure and characteristics of input data  
22 in order to generate derived synthetic content, including  
23 information such as images, videos, audio clips, or text, that has  
24



1 been significantly modified or generated by algorithms, including by  
2 artificial intelligence;

3 4. "Image" includes a photograph, film, videotape, digital  
4 recording or other depiction or portrayal of an object, including a  
5 human body;

6 5. "Intimate parts" means the fully unclothed, partially  
7 unclothed or transparently clothed genitals, pubic area or female  
8 adult nipple;

9 6. "Sexual act" means sexual intercourse including genital,  
10 anal or oral sex; and

11 7. "Visual depiction" means any depiction, photograph, film,  
12 performance, or image displayed, stored, shared, or transmitted in  
13 any format and on any medium including data that is capable of being  
14 converted into a depiction, picture, movie, performance, or image.

15 B. 1. A person commits nonconsensual dissemination of private  
16 sexual images when he or she:

17 a. intentionally disseminates an image of another person  
18 who is engaged in a sexual act or whose intimate parts  
19 are exposed, in whole or in part,

20 b. obtains the image under circumstances in which a  
21 reasonable person would know or understand that the  
22 image was to remain private, and

23 c. disseminates the image without the effective consent  
24 of the depicted person.

1        2. A person commits nonconsensual dissemination of private  
2 sexual images when he or she:

- 3            a. disseminates an artificially generated sexual  
4                depiction of another person with the intent or with  
5                reckless disregard to harass, annoy, threaten, alarm,  
6                or cause physical, emotional, reputational, or  
7                economic harm to the depicted person, and  
8            b. disseminates the artificially generated sexual  
9                depiction without the effective consent of the  
10               depicted person.

11        C. The provisions of this section shall not apply to the  
12 intentional dissemination of an image or artificially generated  
13 sexual depiction of another identifiable person who is engaged in a  
14 sexual act or whose intimate parts are exposed when:

15            1. The dissemination is made for the purpose of a criminal  
16 investigation that is otherwise lawful;

17            2. The dissemination is for the purpose of, or in connection  
18 with, the reporting of unlawful conduct;

19            3. The images or artificially generated sexual depictions  
20 involve voluntary exposure in public or commercial settings; or

21            4. The dissemination serves a lawful purpose.

22        D. Nothing in this section shall be construed to impose  
23 liability upon the following entities solely as a result of content  
24 or information provided by another person:

1        1. An interactive computer service, as defined in 47 U.S.C.,  
2 Section 230(f)(2);

3        2. A wireless service provider, as defined in Section 332(d) of  
4 the Telecommunications Act of 1996, 47 U.S.C., Section 151 et seq.,  
5 Federal Communications Commission rules, and the Omnibus Budget  
6 Reconciliation Act of 1993, Pub. L. No. 103-66; or

7        3. A telecommunications network or broadband provider.

8        E. A person convicted under this section is subject to the  
9 forfeiture provisions in Section 1040.54 of this title.

10       F. Any person who violates the provisions of subsection B of  
11 this section shall, upon conviction, be guilty of a misdemeanor  
12 punishable by imprisonment in a county jail for not more than one  
13 (1) year or by a fine of not more than One Thousand Dollars  
14 (\$1,000.00), or both such fine and imprisonment.

15       G. Any person who violates or attempts to violate the  
16 provisions of subsection B of this section and who gains or attempts  
17 to gain any property or who gains or attempts to gain anything of  
18 value as a result of the nonconsensual dissemination or threatened  
19 dissemination of private sexual images or artificially generated  
20 sexual depictions shall, upon conviction, be guilty of a Class D1  
21 felony offense punishable by imprisonment ~~in the custody of the~~  
22 ~~Department of Corrections for not more than five (5) years~~ as  
23 provided for in subsections B through F of Section 20N of this  
24 title. A second or subsequent violation of this subsection shall be

1 a Class D1 felony offense punishable by imprisonment ~~in the custody~~  
2 ~~of the Department of Corrections for not more than ten (10) years as~~  
3 provided for in subsections B through F of Section 20N of this title  
4 and the offender shall be required to register as a sex offender  
5 under the Sex Offenders Registration Act.

6 H. The state shall not have the discretion to file a  
7 misdemeanor charge, pursuant to Section 234 of Title 22 of the  
8 Oklahoma Statutes, for a violation pursuant to subsection G of this  
9 section.

10 I. The court shall have the authority to order the defendant to  
11 remove the disseminated image or artificially generated sexual  
12 depictions should the court find it is in the power of the defendant  
13 to do so.

14 J. Nothing in this section shall prohibit the prosecution of a  
15 person pursuant to the provisions of Section 1021.2, 1021.3, 1024.1,  
16 1024.2, or 1040.12a of this title or any other applicable statute.

17 K. Any person who violates the provisions of subsection B of  
18 this section by disseminating three or more images or artificially  
19 generated sexual depictions within a six-month period shall, upon  
20 conviction, be guilty of a Class D1 felony offense punishable by  
21 imprisonment ~~in the custody of the Department of Corrections for not~~  
22 ~~more than ten (10) years as provided for in subsections B through F~~  
23 of Section 20N of this title.  
24

1       SECTION 38.       REPEALER       21 O.S. 2021, Section 1040.13b, as  
2 last amended by Section 399, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
3 2025, Section 1040.13b), is hereby repealed.

4       SECTION 39.       AMENDATORY       21 O.S. 2021, Section 1111, as  
5 last amended by Section 1, Chapter 60, O.S.L. 2025 (21 O.S. Supp.  
6 2025, Section 1111), is amended to read as follows:

7       Section 1111. A. Rape is an act of sexual intercourse  
8 involving vaginal or anal penetration accomplished with a male or  
9 female within or without the bonds of matrimony who may be of the  
10 same or the opposite sex as the perpetrator under any of the  
11 following circumstances:

12       1. Where the victim is under ~~sixteen (16)~~ eighteen (18) years  
13 of age;

14       2. Where the victim is incapable through mental illness or any  
15 other unsoundness of mind, whether temporary or permanent, of giving  
16 legal consent;

17       3. Where force or violence is used or threatened, accompanied  
18 by apparent power of execution to the victim or to another person;

19       4. Where the victim is intoxicated by a narcotic or anesthetic  
20 agent, administered by or with the privity of the accused as a means  
21 of forcing the victim to submit;

22       5. Where the victim is at the time unconscious of the nature of  
23 the act and this fact is known to the accused;

24

1        6. Where the victim submits to sexual intercourse under the  
2 belief that the person committing the act is a spouse, and this  
3 belief is induced by artifice, pretense, or concealment practiced by  
4 the accused or by the accused in collusion with the spouse with  
5 intent to induce that belief. In all cases of collusion between the  
6 accused and the spouse to accomplish such act, both the spouse and  
7 the accused, upon conviction, shall be deemed guilty of rape;

8        7. Where the victim is under the legal custody or supervision  
9 of a state agency, a federal agency, a county, a municipality, or a  
10 political subdivision and engages in sexual intercourse with a  
11 state, federal, county, municipal, or political subdivision employee  
12 or an employee of a contractor of the state, the federal government,  
13 a county, a municipality, or a political subdivision that exercises  
14 authority over the victim, or the subcontractor or employee of a  
15 subcontractor of the contractor of the state or federal government,  
16 a county, a municipality, or a political subdivision that exercises  
17 authority over the victim;

18        8. Where the victim is ~~at least sixteen (16) years of age and~~  
19 ~~is~~ less than twenty (20) years of age and is a student, or under the  
20 legal custody or supervision of any public or private elementary or  
21 secondary school, junior high or high school, or public vocational  
22 school, and engages in sexual intercourse with a person who is  
23 eighteen (18) years of age or older and is an employee, contractor,  
24 or subcontractor of a school system. For purposes of this section,

1 "employee of a school system" shall include employed and contracted  
2 school resource officers and security guards;

3 9. Where the victim is nineteen (19) years of age or younger  
4 and is in the legal custody of a state agency, federal agency or  
5 tribal court and engages in sexual intercourse with a foster parent  
6 or foster parent applicant; or

7 10. Where the victim is a student at a secondary school, is  
8 concurrently enrolled at an institution of higher education, and  
9 engages in acts pursuant to this subsection with a perpetrator who  
10 is an employee of the institution of higher education ~~of~~ at which  
11 the victim is enrolled.

12 B. "Employee of an institution of higher education", for  
13 purposes of this section, means faculty, adjunct faculty,  
14 instructors, volunteers, or an employee of a business contracting  
15 with an institution of higher education who may exercise, at any  
16 time, institutional authority over the victim. Employee of an  
17 institution of higher education shall not include an enrolled  
18 student who is not more than three (3) years of age or older than  
19 the concurrently enrolled student and who is employed or  
20 volunteering, in any capacity, for the institution of higher  
21 education.

22 SECTION 40. REPEALER 21 O.S. 2021, Section 1111, as last  
23 amended by Section 1, Chapter 103, O.S.L. 2025 (21 O.S. Supp. 2025,  
24 Section 1111), is hereby repealed.

1       SECTION 41.       REPEALER       21 O.S. 2021, Section 1111, as last  
2 amended by Section 1, Chapter 365, O.S.L. 2025 (21 O.S. Supp. 2025,  
3 Section 1111), is hereby repealed.

4       SECTION 42.       REPEALER       21 O.S. 2021, Section 1115, as  
5 amended by Section 5, Chapter 455, O.S.L. 2002, is hereby repealed.

6       SECTION 43.       AMENDATORY       21 O.S. 2021, Section 1123, as  
7 last amended by Section 2, Chapter 281, O.S.L. 2025 (21 O.S. Supp.  
8 2025, Section 1123), is amended to read as follows:

9       Section 1123. A. It is a Class A3 felony offense for any  
10 person to knowingly and intentionally:

11       1. Make any oral, written or electronically or computer-  
12 generated lewd or indecent proposal to any child under sixteen (16)  
13 years of age, or other individual the person believes to be a child  
14 under sixteen (16) years of age, for the child to have unlawful  
15 sexual relations or sexual intercourse with any person;

16       2. Look upon, touch, maul, or feel the body or private parts of  
17 any child under sixteen (16) years of age in any lewd or lascivious  
18 manner by any acts against public decency and morality, as defined  
19 by law;

20       3. Ask, invite, entice, or persuade any child under sixteen  
21 (16) years of age, or other individual the person believes to be a  
22 child under sixteen (16) years of age, to go alone with any person  
23 to a secluded, remote, or secret place, with the unlawful and  
24 willful intent and purpose then and there to commit any crime



1 against public decency and morality, as defined by law, with the  
2 child;

3 4. In any manner lewdly or lasciviously look upon, touch, maul,  
4 or feel the body or private parts of any child under sixteen (16)  
5 years of age in any indecent manner or in any manner relating to  
6 sexual matters or sexual interest; or

7 5. In a lewd and lascivious manner and for the purpose of  
8 sexual gratification:

- 9 a. urinate or defecate upon a child under sixteen (16)  
10 years of age, or force or require a child to defecate  
11 or urinate upon the body or private parts of another,  
12 or for the purpose of sexual gratification,
- 13 b. ejaculate upon or in the presence of a child,
- 14 c. cause, expose, force or require a child to look upon  
15 the body or private parts of another person,
- 16 d. force or require any child under sixteen (16) years of  
17 age or other individual the person believes to be a  
18 child under sixteen (16) years of age, to view any  
19 obscene materials, child sexual abuse material or  
20 materials deemed harmful to minors as such terms are  
21 defined by Sections 1024.1 and 1040.75 of this title,
- 22 e. cause, expose, force or require a child to look upon  
23 sexual acts performed in the presence of the child, or  
24

1           f.     force or require a child to touch or feel the body or  
2                 private parts of the child or another person.

3           Any person convicted of any violation of this subsection shall  
4 be punished by imprisonment in the custody of the Department of  
5 Corrections for not less than three (3) years nor more than twenty  
6 (20) years, except when the child is under twelve (12) years of age  
7 at the time the offense is committed, and in such case the person  
8 shall, upon conviction, be punished by death or by imprisonment in  
9 the custody of the Department of Corrections for a term of not less  
10 than ten (10) years, life, or life without parole. The provisions  
11 of this subsection shall not apply unless the accused is at least  
12 three (3) years older than the victim, except when accomplished by  
13 the use of force or fear. Except as provided in Section 51.1a of  
14 this title, any person convicted of a second or subsequent violation  
15 of this subsection shall be guilty of a felony punishable as  
16 provided in this subsection and shall not be eligible for probation,  
17 suspended or deferred sentence. Except as provided in Section 51.1a  
18 of this title, any person convicted of a third or subsequent  
19 violation of this subsection shall be guilty of a felony punishable  
20 by imprisonment in the custody of the Department of Corrections for  
21 a term of life or life without parole, in the discretion of the  
22 jury, or in case the jury fails or refuses to fix punishment then  
23 the same shall be pronounced by the court. Any person convicted of  
24 a violation of this subsection after having been twice convicted of

1 a violation of subsection A of Section 1114 of this title, Section  
2 888 of this title, sexual abuse of a child pursuant to Section 843.5  
3 of this title, or of any attempt to commit any of these offenses or  
4 any combination of convictions pursuant to these sections shall be  
5 punished by imprisonment in the custody of the Department of  
6 Corrections for a term of life or life without parole.

7 B. No person shall commit sexual battery on any other person.

8 "Sexual battery" shall mean the intentional touching, mauling or  
9 feeling of the body or private parts of any person sixteen (16)  
10 years of age or older, in a lewd and lascivious manner:

11 1. Without the consent of that person;

12 2. When committed by a state, county, municipal or political  
13 subdivision employee or a contractor or an employee of a contractor  
14 of the state, a county, a municipality or political subdivision of  
15 this state upon a person who is under the legal custody, supervision  
16 or authority of a state agency, a county, a municipality or a  
17 political subdivision of this state, or the subcontractor or  
18 employee of a subcontractor of the contractor of the state or  
19 federal government, a county, a municipality or a political  
20 subdivision of this state;

21 3. When committed upon a person who is at least sixteen (16)  
22 years of age and is less than twenty (20) years of age and is a  
23 student, or in the legal custody or supervision of any public or  
24 private elementary or secondary school, or technology center school,

1 by a person who is eighteen (18) years of age or older and is an  
2 employee of a school system;

3 4. When committed upon a person who is nineteen (19) years of  
4 age or younger and is in the legal custody of a state agency,  
5 federal agency or a tribal court, by a foster parent or foster  
6 parent applicant; or

7 5. When the victim is a student at a secondary school, is  
8 concurrently enrolled at an institution of higher education, and  
9 engages in acts pursuant to this subsection with a perpetrator who  
10 is an employee of the institution of higher education of which the  
11 student is enrolled.

12 As used in this subsection, "employee of an institution of  
13 higher education" means faculty, adjunct faculty, instructors,  
14 volunteers, or an employee of a business contracting with an  
15 institution of higher education who may exercise, at any time,  
16 institutional authority over the victim. Employee of an institution  
17 of higher education shall not include an enrolled student who is not  
18 more than three (3) years of age or older than the concurrently  
19 enrolled student and who is employed or volunteering, in any  
20 capacity, for the institution of higher education.

21 As used in this subsection, "employee of a school system" means  
22 a teacher, principal or other duly appointed person employed by a  
23 school system or an employee of a firm contracting with a school  
24 system, including a school resource officer and security guard.

1 C. No person shall in any manner lewdly or lasciviously:

2 1. Look upon, touch, maul, or feel the body or private parts of  
3 any human corpse in any indecent manner relating to sexual matters  
4 or sexual interest; or

5 2. Urinate, defecate or ejaculate upon any human corpse.

6 D. Any person convicted of a violation of subsection B or C of  
7 this section shall be deemed guilty of a Class B4 felony offense and  
8 shall be punished by imprisonment in the custody of the Department  
9 of Corrections for not more than ten (10) years.

10 E. The fact that an undercover operative or law enforcement  
11 officer was involved in the detection and investigation of an  
12 offense pursuant to this section shall not constitute a defense to a  
13 prosecution under this section.

14 F. Except for persons sentenced to life or life without parole,  
15 any person sentenced to imprisonment for two (2) years or more for a  
16 violation of this section shall be required to serve a term of post-  
17 imprisonment supervision pursuant to subparagraph f of paragraph 1  
18 of subsection A of Section 991a of Title 22 of the Oklahoma Statutes  
19 under conditions determined by the Department of Corrections. The  
20 jury shall be advised that the mandatory post-imprisonment  
21 supervision shall be in addition to the actual imprisonment.

22 SECTION 44. REPEALER 21 O.S. 2021, Section 1123, as last  
23 amended by Section 2, Chapter 60, O.S.L. 2025 (21 O.S. Supp. 2025,  
24 Section 1123), is hereby repealed.

1       SECTION 45.       REPEALER       21 O.S. 2021, Section 1123, as last  
2 amended by Section 38, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,  
3 Section 1123), is hereby repealed.

4       SECTION 46.       AMENDATORY       21 O.S. 2021, Section 1173, as  
5 last amended by Section 1, Chapter 145, O.S.L. 2025 (21 O.S. Supp.  
6 2025, Section 1173), is amended to read as follows:

7       Section 1173. A. Any person who willfully, maliciously, and  
8 repeatedly follows or harasses another person in a manner that:

9       1. Would cause a reasonable person or a member of the immediate  
10 family of that person as defined in subsection F of this section to  
11 feel frightened, intimidated, threatened, harassed, or molested; and

12       2. Actually causes the person being followed or harassed to  
13 feel terrorized, frightened, intimidated, threatened, harassed, or  
14 molested,

15 shall, upon conviction, be guilty of the crime of stalking, which is  
16 a felony punishable by imprisonment in the custody of the Department  
17 of Corrections for a term not to exceed three (3) years, or by a  
18 fine not to exceed Five Thousand Dollars (\$5,000.00), or by both  
19 such fine and imprisonment. Any person convicted of a second  
20 violation of the provisions of this subsection shall be punished by  
21 imprisonment in the custody of the Department of Corrections for a  
22 term not to exceed six (6) years, or by a fine not to exceed Ten  
23 Thousand Dollars (\$10,000.00), or by both such fine and  
24 imprisonment. Any person convicted of a third or subsequent

1 violation of the provisions of this subsection shall be punished by  
2 imprisonment in the custody of the Department of Corrections for a  
3 term not to exceed twelve (12) years, or by a fine not to exceed  
4 Fifteen Thousand Dollars (\$15,000.00), or by both such fine and  
5 imprisonment.

6 B. Any person who violates the provisions of subsection A of  
7 this section when:

8 1. There is a permanent or temporary restraining order, a  
9 protective order, an emergency ex parte protective order, or an  
10 injunction in effect prohibiting the behavior described in  
11 subsection A of this section against the same party, when the person  
12 violating the provisions of subsection A of this section has actual  
13 notice of the issuance of such order or injunction;

14 2. Said person is on probation or parole, a condition of which  
15 prohibits the behavior described in subsection A of this section  
16 against the same party or under the conditions of a community or  
17 alternative punishment; or

18 3. Said person, within ten (10) years preceding the violation  
19 of subsection A of this section, completed the execution of sentence  
20 for a conviction of a crime involving the use or threat of violence  
21 against the same party, or against any member of the immediate  
22 family of such party,  
23 shall, upon conviction, be guilty of a Class B5 felony offense  
24 punishable by imprisonment in the custody of the Department of

1 Corrections for a term not to exceed fifteen (15) years, or by a  
2 fine not to exceed Twenty Thousand Dollars (\$20,000.00), or by both  
3 such fine and imprisonment.

4 C. Any person who:

5 1. Commits a second act of stalking within ten (10) years of  
6 the completion of sentence for a prior conviction of stalking; or

7 2. Has a prior conviction of stalking and, after being served  
8 with a protective order that prohibits contact with an individual,  
9 knowingly makes unconsented contact with the same individual,

10 shall, upon conviction, be guilty of a felony punishable by  
11 imprisonment in the custody of the Department of Corrections for a  
12 term not to exceed twenty (20) years, or by a fine not to exceed  
13 Twenty-five Thousand Dollars (\$25,000.00), or by both such fine and  
14 imprisonment.

15 D. Any person who commits an act of stalking within ten (10)  
16 years of the completion of execution of sentence for a prior  
17 conviction under subsection B or C of this section shall, upon  
18 conviction, be guilty of a Class B4 felony offense punishable by  
19 imprisonment in the custody of the Department of Corrections for a  
20 term not to exceed twenty-five (25) years, or by a fine not to  
21 exceed Thirty Thousand Dollars (\$30,000.00), or by both such fine  
22 and imprisonment.

23 E. Evidence that the defendant continued to engage in a course  
24 of conduct involving repeated unconsented contact, as defined in



1 subsection F of this section, with the victim after having been  
2 requested by the victim to discontinue the same or any other form of  
3 unconsented contact, and to refrain from any further unconsented  
4 contact with the victim, shall give rise to a rebuttable presumption  
5 that the continuation of the course of conduct caused the victim to  
6 feel terrorized, frightened, intimidated, threatened, harassed, or  
7 molested.

8 F. For purposes of determining the crime of stalking, the  
9 following definitions shall apply:

10 1. "Harasses" means a pattern or course of conduct directed  
11 toward another individual that includes, but is not limited to,  
12 repeated or continuing unconsented contact, that would cause a  
13 reasonable person to suffer emotional distress, and that actually  
14 causes emotional distress to the victim. Harassment shall include  
15 harassing or obscene phone calls as prohibited by Section 1172 of  
16 this title and conduct prohibited by Section 850 of this title.  
17 Harassment does not include constitutionally protected activity or  
18 conduct that serves a legitimate purpose;

19 2. "Course of conduct" means a series of two or more separate  
20 acts over a period of time, however short or long, evidencing a  
21 continuity of purpose, including any of the following:

22 a. maintaining a visual or physical proximity to the  
23 victim,  
24

- b. approaching or confronting the victim in a public place or on private property,
- c. appearing at the workplace of the victim or contacting the employer or coworkers of the victim,
- d. appearing at the home of the victim or contacting the neighbors of the victim,
- e. entering onto or remaining on property owned, leased, or occupied by the victim,
- f. contacting the victim by telephone, text message, electronic message, electronic mail, or other means of electronic communication or causing the telephone or electronic device of the victim or the telephone or electronic device of any other person to ring or generate notifications repeatedly or continuously, regardless of whether a conversation ensues,
- g. photographing, videotaping, audiotaping, or, through any other electronic means, monitoring or recording the activities of the victim. This subparagraph applies regardless of where the act occurs,
- h. sending to the victim any physical or electronic material or contacting the victim by any means, including any message, comment, or other content posted on any Internet site or web application,

- 1           i.    sending to a family member or member of the household  
2               of the victim, or any current or former employer of  
3               the victim, or any current or former coworker of the  
4               victim, or any friend of the victim, any physical or  
5               electronic material or contacting such person by any  
6               means, including any message, comment, or other  
7               content posted on any Internet site or web  
8               application, for the purpose of obtaining information  
9               about, disseminating information about, or  
10              communicating with the victim,
- 11          j.    placing an object on or delivering an object to  
12               property owned, leased, or occupied by the victim,
- 13          k.    delivering an object to a family member or member of  
14               the household of the victim, or an employer, coworker,  
15               or friend of the victim, or placing an object on, or  
16               delivering an object to, property owned, leased, or  
17               occupied by such a person with the intent that the  
18               object be delivered to the victim, or
- 19          l.    causing a person to engage in any of the acts  
20               described in subparagraphs a through k of this  
21               paragraph.

22   Constitutionally protected activity is not included within the  
23   meaning of "course of conduct";  
24

1        3. "Emotional distress" means significant mental suffering or  
2 distress that may, but does not necessarily require, medical or  
3 other professional treatment or counseling;

4        4. "Unconsented contact" means any contact with another  
5 individual that is initiated or continued without the consent of the  
6 individual, or in disregard of that individual's expressed desire  
7 that the contact be avoided or discontinued. Constitutionally  
8 protected activity is not included within the meaning of unconsented  
9 contact. Unconsented contact includes but is not limited to any of  
10 the following:

11            a. following or appearing within the sight of that  
12 individual,

13            b. approaching or confronting that individual in a public  
14 place or on private property,

15            c. appearing at the workplace or residence of that  
16 individual,

17            d. entering onto or remaining on property owned, leased,  
18 or occupied by that individual,

19            e. contacting that individual by telephone,

20            f. sending mail or electronic communications to that  
21 individual, and

22            g. placing an object on, or delivering an object to,  
23 property owned, leased, or occupied by that  
24 individual;

1        5. "Member of the immediate family", for the purposes of this  
2 section, means any spouse, parent, child, person related within the  
3 third degree of consanguinity or affinity or any other person who  
4 regularly resides in the household or who regularly resided in the  
5 household within the prior six (6) months; and

6        6. "Following" shall include the tracking of the movement or  
7 location of an individual through the use of a Global Positioning  
8 System (GPS) device or other monitoring device by a person, or  
9 person who acts on behalf of another, without the consent of the  
10 individual whose movement or location is being tracked; provided,  
11 this shall not apply to the lawful use of a GPS device or other  
12 monitoring device or to the use by a new or used motor vehicle  
13 dealer or other motor vehicle creditor of a GPS device or other  
14 monitoring device, including a device containing technology used to  
15 remotely disable the ignition of a motor vehicle, in connection with  
16 lawful action after default of the terms of a motor vehicle credit  
17 sale, loan or lease, and with the express written consent of the  
18 owner or lessee of the motor vehicle.

19        G. Any pleas of guilty or nolo contendere or finding of guilt  
20 to a violation of any provision of this section shall constitute a  
21 conviction of the offense for the purpose of any subsection of this  
22 section under which the existence of a prior conviction is relevant  
23 for a period of ten (10) years following the completion of any  
24 sentence or court imposed probationary term.

1       SECTION 47.       REPEALER       21 O.S. 2021, Section 1173, as last  
2 amended by Section 118, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
3 2025, Section 1173), is hereby repealed.

4       SECTION 48.       AMENDATORY       21 O.S. 2021, Section 1277, as  
5 amended by Section 2, Chapter 251, O.S.L. 2025 (21 O.S. Supp. 2025,  
6 Section 1277), is amended to read as follows:

7       Section 1277.

8                       UNLAWFUL CARRY IN CERTAIN PLACES

9       A. It shall be unlawful for any person, including a person in  
10 possession of a valid handgun license issued pursuant to the  
11 provisions of the Oklahoma Self-Defense Act, to carry any concealed  
12 or unconcealed firearm into any of the following places:

13       1. Any building or office space which is owned or leased by a  
14 city, town, county, or state governmental authority for the purpose  
15 of conducting business with the public. However, the governing body  
16 of a city or town may authorize the concealed carry of handguns into  
17 any building or office space that is owned or leased by a city or  
18 town, except those places listed in paragraph 2 of this subsection;

19       2. Any courthouse, courtroom, prison, jail, detention facility,  
20 or any facility used to process, hold, or house arrested persons,  
21 prisoners, or persons alleged delinquent or adjudicated delinquent,  
22 except as provided in Section 21 of Title 57 of the Oklahoma  
23 Statutes;

24

1        3. Any public or private elementary or public or private  
2 secondary school, except as provided in subsections C and D of this  
3 section;

4        4. Any publicly owned or operated sports arena or venue during  
5 a professional sporting event, unless allowed by the event holder;

6        5. Any place where gambling is authorized by law, unless  
7 allowed by the property owner;

8        6. Any other place specifically prohibited by law; and

9        7. Any property set aside by a county, city, town, public trust  
10 with a county, city, or town as a beneficiary, or state governmental  
11 authority for an event that is secured with minimum security  
12 provisions. For purposes of this paragraph, a minimum security  
13 provision consists of a location that is secured utilizing the  
14 following:

15            a. a metallic-style security fence that is at least eight  
16                (8) feet in height that encompasses the property and  
17                is secured in such a way as to deter unauthorized  
18                entry,

19            b. controlled access points staffed by a uniformed,  
20                commissioned peace officer, and

21            c. a metal detector whereby persons walk or otherwise  
22                travel with their property through or by the metal  
23                detector.  
24

1       B. It shall be lawful for a person to carry a concealed or  
2 unconcealed firearm on the following properties:

3       1. Any property set aside for the use or parking of any  
4 vehicle, whether attended or unattended, by a city, town, county, or  
5 state governmental authority;

6       2. Any property set aside for the use or parking of any  
7 vehicle, whether attended or unattended, which is open to the  
8 public, or by any entity engaged in gambling authorized by law;

9       3. Any property adjacent to a building or office space in which  
10 concealed or unconcealed weapons are prohibited by the provisions of  
11 this section;

12       4. Any property designated by a city, town, county, or state  
13 governmental authority as a park, recreational area, wildlife  
14 refuge, wildlife management area, or fairgrounds; provided, nothing  
15 in this paragraph shall be construed to authorize any entry by a  
16 person in possession of a concealed or unconcealed firearm into any  
17 building, office space, or event which is specifically prohibited by  
18 the provisions of subsection A of this section;

19       5. Any property set aside by a public or private elementary or  
20 secondary school for the use or parking of any vehicle, whether  
21 attended or unattended; provided, however, the firearm shall be  
22 stored and hidden from view in a locked motor vehicle when the motor  
23 vehicle is left unattended on school property; and  
24



1       6. Any public property set aside temporarily by a county, city,  
2 town, public trust with a county, city, or town as a beneficiary, or  
3 state governmental authority for the holder of an event permit that  
4 is without minimum security provisions, as such term is defined in  
5 paragraph 7 of subsection A of this section; provided, the carry of  
6 firearms within the permitted event area shall be limited to  
7 concealed carry of a handgun unless otherwise authorized by the  
8 holder of the event permit.

9       Nothing contained in any provision of this subsection or  
10 subsection C of this section shall be construed to authorize or  
11 allow any person in control of any place described in subsection A  
12 of this section to establish any policy or rule that has the effect  
13 of prohibiting any person in lawful possession of a handgun license  
14 or otherwise in lawful possession of a firearm from carrying or  
15 possessing the firearm on the property described in this subsection.

16       C. A concealed or unconcealed weapon may be carried onto  
17 private school property or in any school bus or vehicle used by any  
18 private school for transportation of students or teachers by a  
19 person who is licensed pursuant to the Oklahoma Self-Defense Act,  
20 provided a policy has been adopted by the governing entity of the  
21 private school that authorizes the carrying and possession of a  
22 weapon on private school property or in any school bus or vehicle  
23 used by a private school. Except for acts of gross negligence or  
24 willful or wanton misconduct, a governing entity of a private school

1 that adopts a policy which authorizes the possession of a weapon on  
2 private school property, a school bus, or a vehicle used by the  
3 private school shall not be subject to liability for any injuries  
4 arising from the adoption of the policy. The provisions of this  
5 subsection shall not apply to claims pursuant to the Administrative  
6 Workers' Compensation Act.

7 D. ~~Notwithstanding paragraph 3 of subsection A of this section,~~  
8 a A board of education of a school district may adopt a policy  
9 pursuant to Section 5-149.2 of Title 70 of the Oklahoma Statutes to  
10 authorize the carrying of a handgun onto school property by school  
11 personnel specifically designated by the board of education,  
12 provided such personnel either:

- 13 1. Possess a valid armed security guard license as provided for  
14 in the Oklahoma Security Guard and Private Investigator Act; or
- 15 2. Hold a valid reserve peace officer certification as provided  
16 for in Section 3311 of Title 70 of the Oklahoma Statutes.

17 Nothing in this subsection shall be construed to restrict  
18 authority granted elsewhere in law to carry firearms.

19 E. Notwithstanding the provisions of subsection A of this  
20 section, on any property designated as a municipal zoo or park of  
21 any size that is owned, leased, operated, or managed by:

- 22 1. A public trust created pursuant to the provisions of Section  
23 176 of Title 60 of the Oklahoma Statutes; or
- 24 2. A nonprofit entity,

1 an individual shall be allowed to carry a concealed handgun but not  
2 openly carry a handgun on the property.

3 F. Any person violating the provisions of paragraph 2 or 3 of  
4 subsection A of this section shall, upon conviction, be guilty of a  
5 misdemeanor punishable by a fine not to exceed Two Hundred Fifty  
6 Dollars (\$250.00). A person violating any other provision of  
7 subsection A of this section may be denied entrance onto the  
8 property or removed from the property. If the person refuses to  
9 leave the property and a peace officer is summoned, the person may  
10 be issued a citation for an amount not to exceed Two Hundred Fifty  
11 Dollars (\$250.00).

12 G. No person in possession of a valid handgun license issued  
13 pursuant to the provisions of the Oklahoma Self-Defense Act or who  
14 is carrying or in possession of a firearm as otherwise permitted by  
15 law or who is carrying or in possession of a machete, blackjack,  
16 loaded cane, hand chain, or metal knuckles shall be authorized to  
17 carry the firearm, machete, blackjack, loaded cane, hand chain, or  
18 metal knuckles into or upon any college, university, or technology  
19 center school property, except as provided in this subsection. For  
20 purposes of this subsection, the following property shall not be  
21 construed to be college, university, or technology center school  
22 property:

23 1. Any property set aside for the use or parking of any motor  
24 vehicle, whether attended or unattended, provided the firearm,

1 machete, blackjack, loaded cane, hand chain, or metal knuckles are  
2 carried or stored as required by law and the firearm, machete,  
3 blackjack, loaded cane, hand chain, or metal knuckles are not  
4 removed from the motor vehicle without the prior consent of the  
5 college or university president or technology center school  
6 administrator while the vehicle is on any college, university, or  
7 technology center school property;

8 2. Any property authorized for possession or use of firearms,  
9 machetes, blackjacks, loaded canes, hand chains, or metal knuckles  
10 by college, university, or technology center school policy; and

11 3. Any property authorized by the written consent of the  
12 college or university president or technology center school  
13 administrator, provided the written consent is carried with the  
14 firearm, machete, blackjack, loaded cane, hand chain, or metal  
15 knuckles and the valid handgun license while on college, university,  
16 or technology center school property.

17 The college, university, or technology center school may notify  
18 the Oklahoma State Bureau of Investigation within ten (10) days of a  
19 violation of any provision of this subsection by a licensee. Upon  
20 receipt of a written notification of violation, the Bureau shall  
21 give a reasonable notice to the licensee and hold a hearing. At the  
22 hearing, upon a determination that the licensee has violated any  
23 provision of this subsection, the licensee may be subject to an  
24

1 administrative fine of Two Hundred Fifty Dollars (\$250.00) and may  
2 have the handgun license suspended for three (3) months.

3 Nothing contained in any provision of this subsection shall be  
4 construed to authorize or allow any college, university, or  
5 technology center school to establish any policy or rule that has  
6 the effect of prohibiting any person in lawful possession of a  
7 handgun license or any person in lawful possession of a firearm,  
8 machete, blackjack, loaded cane, hand chain, or metal knuckles from  
9 possession of a firearm, machete, blackjack, loaded cane, hand  
10 chain, or metal knuckles in places described in paragraphs 1, 2, and  
11 3 of this subsection. Nothing contained in any provision of this  
12 subsection shall be construed to limit the authority of any college,  
13 university, or technology center school in this state from taking  
14 administrative action against any student for any violation of any  
15 provision of this subsection.

16 H. The provisions of this section shall not apply to the  
17 following:

18 1. Any peace officer or any person authorized by law to carry a  
19 firearm in the course of employment;

20 2. Any district judge, associate district judge, ~~or~~ special  
21 district judge, Judge of the Court of Civil Appeals, Judge of the  
22 Court of Criminal Appeals, or Justice of the Supreme Court who is in  
23 possession of a valid handgun license issued pursuant to the  
24 provisions of the Oklahoma Self-Defense Act and whose name appears

1 on a list maintained by the Administrative Director of the Courts,  
2 when acting in the course and scope of employment within the  
3 courthouses of the county that falls within the jurisdiction of the  
4 district judge, associate district judge, or special district judge;

5 3. Any private investigator with a firearms authorization when  
6 acting in the course and scope of employment;

7 4. ~~Any~~ An elected official of a county, who is in possession of  
8 a valid handgun license issued pursuant to the provisions of the  
9 Oklahoma Self-Defense Act, may carry a concealed handgun when acting  
10 in the performance of his or her duties within the courthouses of  
11 the county in which he or she was elected. The provisions of this  
12 paragraph shall not allow the elected county official to carry the  
13 handgun into a courtroom;

14 5. The sheriff of any county may authorize certain employees of  
15 the county, who possess a valid handgun license issued pursuant to  
16 the provisions of the Oklahoma Self-Defense Act, to carry a  
17 concealed handgun when acting in the course and scope of employment  
18 within the courthouse in the county in which the person is employed.  
19 Nothing in the Oklahoma Self-Defense Act shall prohibit the sheriff  
20 from requiring additional instruction or training before granting  
21 authorization to carry a concealed handgun within the courthouse.  
22 The provisions of this paragraph and of paragraph 6 of this  
23 subsection shall not allow the county employee to carry the handgun  
24

1 into a courtroom, sheriff's office, adult or juvenile jail, or any  
2 other prisoner detention area;

3 6. The board of county commissioners of any county may  
4 authorize certain employees of the county, who possess a valid  
5 handgun license issued pursuant to the provisions of the Oklahoma  
6 Self-Defense Act, to carry a concealed handgun when acting in the  
7 course and scope of employment on county annex facilities or grounds  
8 surrounding the county courthouse that fall within the jurisdiction  
9 of the county employees; and

10 7. Any municipal judge, who is in possession of a valid handgun  
11 license issued pursuant to the provisions of the Oklahoma Self-  
12 Defense Act, when acting in the course and scope of employment  
13 within the courthouses of the municipality that are within the  
14 jurisdiction of the municipal judge.

15 I. 1. Any elected official of a municipality or any municipal  
16 employee approved by the governing body of a municipality, who  
17 possesses a valid handgun license issued pursuant to the provisions  
18 of the Oklahoma Self-Defense Act, may carry a concealed handgun when  
19 acting in the performance of his or her official duties within  
20 municipal buildings that are within the jurisdiction of the elected  
21 official or municipal employee.

22 2. For purposes of this subsection, a firearm may not be  
23 present inside a firearm-prohibited location, which shall include:  
24

1           a.    any building or office space on municipally owned or  
2                leased property designated as a firearm-prohibited  
3                location by the municipality, municipal trust, or  
4                municipal authority, and

5           b.    any police department, courthouse, courtroom, prison,  
6                jail, detention facility, or any facility used to  
7                process, hold, or house arrested persons, prisoners,  
8                or persons alleged delinquent or adjudicated  
9                delinquent.

10          3.    Nothing in this subsection shall be construed to require an  
11       elected official or designated employee of the municipality to carry  
12       a firearm as a condition of employment or service with the  
13       municipality.

14          J.    For the purposes of this section, "motor vehicle" means any  
15       automobile, truck, minivan, sport utility vehicle, or motorcycle, as  
16       defined in Section 1-135 of Title 47 of the Oklahoma Statutes,  
17       equipped with a locked accessory container within or affixed to the  
18       motorcycle.

19          SECTION 49.        REPEALER        21 O.S. 2021, Section 1277, as  
20       amended by Section 1, Chapter 70, O.S.L. 2025 (21 O.S. Supp. 2025,  
21       Section 1277), is hereby repealed.

22          SECTION 50.        AMENDATORY       21 O.S. 2021, Section 1289.16, as  
23       amended by Section 3, Chapter 261, O.S.L. 2025 (21 O.S. Supp. 2025,  
24       Section 1289.16), is amended to read as follows:



1       Section 1289.16.

2                               FELONY POINTING FIREARMS

3       A. It shall be lawful to point a firearm, knife, or any other  
4 deadly weapon at another person or persons by:

5       1. A person who can legally own or possess a weapon pursuant to  
6 the provisions of Section 1272 of this title:

7           a. during an act of self-defense, or

8           b. in defense of real or private property, whether owned,  
9               leased, or occupied by permission of the property  
10             owner and whether or not the person possesses a valid  
11             handgun license issued pursuant to the Oklahoma Self-  
12             Defense Act;

13       2. A person in the defensive display of a firearm or other  
14 deadly weapon, as provided for in Section 1289.25 of this title;

15       3. Law enforcement authorities in the performance of their  
16 duties;

17       4. Armed security guards licensed by the Council on Law  
18 Enforcement Education and Training pursuant to the Oklahoma Security  
19 Guard and Private Investigator Act in the performance of their  
20 duties;

21       5. Members of the state military forces in the performance of  
22 their duties;

23       6. Members of the federal military reserve and active military  
24 components in the performance of their duties;

1        7. Any federal government law enforcement officer in the  
2 performance of any duty; or

3        8. Any person during the performance of a play on stage, while  
4 participating in a rodeo, or when participating in a television  
5 program or film project.

6        B. It shall be unlawful for any person to willfully and without  
7 lawful cause point a firearm, knife, or any other deadly weapon,  
8 whether loaded or not, at any person or persons for the purpose of  
9 threatening or with the intention of discharging the firearm or with  
10 any malice or for any purpose of injuring, either through physical  
11 injury or mental or emotional intimidation, or for purposes of  
12 whimsy, humor, or prank, or in anger or otherwise.

13        C. Any person convicted of a violation of the provisions of  
14 this section shall be guilty of a Class B4 felony offense and shall  
15 be punished as provided in Section 1289.17 of this title.

16        SECTION 51.        REPEALER        21 O.S. 2021, Section 1289.16, as  
17 amended by Section 131, Chapter 486, O.S.L. 2025 (21 O.S. Supp.  
18 2025, Section 1289.16), is hereby repealed.

19        SECTION 52.        REPEALER        21 O.S. 2021, Section 1290.5, as  
20 amended by Section 5, Chapter 146, O.S.L. 2021, is hereby repealed.

21        SECTION 53.        REPEALER        21 O.S. 2021, Section 1451, as  
22 amended by Section 1, Chapter 221, O.S.L. 2016, is hereby repealed.

23        SECTION 54.        REPEALER        21 O.S. 2021, Section 1521, as  
24 amended by Section 2, Chapter 221, O.S.L. 2016, is hereby repealed.

1       SECTION 55.       REPEALER       21 O.S. 2021, Section 1541.2, as  
2 amended by Section 5, Chapter 221, O.S.L. 2016, is hereby repealed.

3       SECTION 56.       REPEALER       21 O.S. 2021, Section 1541.3, as  
4 amended by Section 6, Chapter 221, O.S.L. 2016, is hereby repealed.

5       SECTION 57.       REPEALER       21 O.S. 2021, Section 1577, as  
6 amended by Section 11, Chapter 221, O.S.L. 2016, is hereby repealed.

7       SECTION 58.       REPEALER       21 O.S. 2021, Section 1578, as  
8 amended by Section 12, Chapter 221, O.S.L. 2016, is hereby repealed.

9       SECTION 59.       REPEALER       21 O.S. 2021, Section 1579, as  
10 amended by Section 13, Chapter 221, O.S.L. 2016, is hereby repealed.

11       SECTION 60.       REPEALER       21 O.S. 2021, Section 1621, as  
12 amended by Section 15, Chapter 221, O.S.L. 2016, is hereby repealed.

13       SECTION 61.       REPEALER       21 O.S. 2021, Section 1704, as  
14 amended by Section 16, Chapter 221, O.S.L. 2016, is hereby repealed.

15       SECTION 62.       REPEALER       21 O.S. 2021, Section 1705, as  
16 amended by Section 17, Chapter 221, O.S.L. 2016, is hereby repealed.

17       SECTION 63.       REPEALER       21 O.S. 2021, Section 1713, as  
18 amended by Section 18, Chapter 221, O.S.L. 2016, is hereby repealed.

19       SECTION 64.       REPEALER       21 O.S. 2021, Section 1731, as  
20 amended by Section 19, Chapter 221, O.S.L. 2016, is hereby repealed.

21       SECTION 65.       AMENDATORY       21 O.S. 2021, Section 1903, as  
22 amended by Section 2, Chapter 405, O.S.L. 2025 (21 O.S. Supp. 2025,  
23 Section 1903), is amended to read as follows:

24

1       Section 1903. A. No person shall by force or violence, or  
2 threat of force or violence, seize or exercise control of any  
3 rolling stock transit vehicle. Any person violating this subsection  
4 shall be guilty of a Class B1 felony offense and shall, upon  
5 conviction, be punished by imprisonment in the custody of the  
6 Department of Corrections for not more than twenty (20) years, or by  
7 a fine not more than Twenty Thousand Dollars (\$20,000.00), or by  
8 both such fine and imprisonment.

9       B. No person shall intimidate, threaten, assault, or batter any  
10 driver, attendant, guard, or passenger of any rolling stock transit  
11 vehicle or cause disruption to the provided service or cause harm to  
12 any person. Any person violating this subsection shall be guilty of  
13 a Class B4 felony offense and shall, upon conviction, be punished by  
14 imprisonment in the custody of the Department of Corrections for not  
15 more than ten (10) years, by a fine not more than Five Thousand  
16 Dollars (\$5,000.00), or by both such fine and imprisonment.

17       C. Any person violating subsection A or B of this section using  
18 a dangerous or deadly weapon shall be guilty of a Class B1 felony  
19 offense, and shall, upon conviction, be punished by imprisonment in  
20 the custody of the Department of Corrections for not more than  
21 twenty (20) years, by a fine not more than Twenty Thousand Dollars  
22 (\$20,000.00), or by both such fine and imprisonment.

23       D. It shall be unlawful for any person to discharge any firearm  
24 into or within any rolling stock transit vehicle, terminal, or other

1 transportation facility, unless such action is determined to have  
2 been in defensive force resulting from reasonable fear of imminent  
3 peril of death or great bodily harm to himself or herself or  
4 another. Such person shall, upon conviction, be guilty of a Class  
5 B4 felony offense punishable by a fine not more than Five Thousand  
6 Dollars (\$5,000.00), by imprisonment in the custody of the  
7 Department of Corrections for not more than five (5) years, or by  
8 both such fine and imprisonment.

9 SECTION 66. REPEALER 21 O.S. 2021, Section 1903, as  
10 amended by Section 62, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025,  
11 Section 1903), is hereby repealed.

12 SECTION 67. AMENDATORY 47 O.S. 2021, Section 11-902, as  
13 amended by Section 1, Chapter 347, O.S.L. 2025 (47 O.S. Supp. 2025,  
14 Section 11-902), is amended to read as follows:

15 Section 11-902. A. It is unlawful and punishable as provided  
16 for in this section for any person to drive, operate, or be in  
17 actual physical control of a motor vehicle within this state,  
18 whether upon public roads, highways, streets, turnpikes, other  
19 public places or upon any private road, street, alley, or lane which  
20 provides access to one or more single or multi-family dwellings,  
21 who:

22 1. Has a blood or breath alcohol concentration, as defined in  
23 Section 756 of this title, of eight-hundredths (0.08) or more at the  
24 time of a test of such person's blood or breath;

1        2. Is under the influence of alcohol;

2        3. Has any amount of a Schedule I chemical or controlled  
3 substance, as defined in Section 2-204 of Title 63 of the Oklahoma  
4 Statutes, or one of its metabolites or analogs in the person's  
5 blood, saliva, urine, or any other bodily fluid at the time of a  
6 test of such person's blood, saliva, urine, or any other bodily  
7 fluid;

8        4. Is under the influence of any intoxicating substance other  
9 than alcohol which may render such person incapable of safely  
10 driving or operating a motor vehicle. The timing requirement for  
11 the administration of tests pursuant to Section 756 of this title  
12 shall not apply to this paragraph; or

13        5. Is under the combined influence of alcohol and any other  
14 intoxicating substance which may render such person incapable of  
15 safely driving or operating a motor vehicle. The timing requirement  
16 for the administration of tests pursuant to Section 756 of this  
17 title shall not apply to this paragraph.

18        B. The fact that any person charged with a violation of this  
19 section is or has been lawfully entitled to use alcohol or a  
20 controlled dangerous substance or any other intoxicating substance  
21 shall not constitute a defense against any charge of violating this  
22 section.

1 C. 1. Any person who is convicted of a violation of the  
2 provisions of this section shall be guilty of a misdemeanor for the  
3 first offense and shall:

- 4 a. participate in an assessment and evaluation pursuant  
5 to subsection H of this section and shall follow all  
6 recommendations made in the assessment and evaluation,
- 7 b. be punished by imprisonment in jail for not less than  
8 ten (10) days nor more than one (1) year, and
- 9 c. be fined not more than One Thousand Dollars  
10 (\$1,000.00).

11 2. Any person who, having been convicted of or having received  
12 deferred judgment for a violation of this section or a violation  
13 pursuant to the provisions of any law of this state or another state  
14 prohibiting the offenses provided in this section, Section 11-904 of  
15 this title, or paragraph 4 of subsection A of Section 852.1 of Title  
16 21 of the Oklahoma Statutes, or having a prior conviction in a  
17 municipal criminal court of record for the violation of a municipal  
18 ordinance prohibiting the offense provided for in this section,  
19 commits a subsequent violation of this section within ten (10) years  
20 of the date following the completion of the execution of such  
21 sentence or deferred judgment shall, upon conviction, be guilty of a  
22 Class C2 felony offense and shall participate in an assessment and  
23 evaluation pursuant to subsection H of this section and shall be  
24 sentenced to:

- 1           a.    follow all recommendations made in the assessment and  
2                   evaluation for treatment at the defendant's expense,  
3           b.    use of an ignition interlock device, as provided by  
4                   subparagraph n of paragraph 1 of subsection A of  
5                   Section 991a of Title 22 of the Oklahoma Statutes,  
6           c.    ~~imprisonment in the custody of the Department of~~  
7                   ~~Corrections for not less than one (1) year and not~~  
8                   ~~more than five (5) years~~ as provided for in  
9                   subsections B through F of Section 20M of Title 21 of  
10                  the Oklahoma Statutes, and  
11           d.    a fine not more than Two Thousand Five Hundred Dollars  
12                   (\$2,500.00).

13           However, if the treatment in subsection H of this section does  
14   not include residential or inpatient treatment for a period of not  
15   less than five (5) days, the person shall serve a term of  
16   imprisonment of at least five (5) days.

17           3.   Any person who commits a violation of this section after  
18   having been convicted of a felony offense pursuant to the provisions  
19   of this section or a violation pursuant to the provisions of any law  
20   of this state or another state prohibiting the offenses provided for  
21   in this section, Section 11-904 of this title, or paragraph 4 of  
22   subsection A of Section 852.1 of Title 21 of the Oklahoma Statutes  
23   shall be guilty of a Class B4 felony offense and participate in an  
24



1 assessment and evaluation pursuant to subsection H of this section  
2 and shall be sentenced to:

- 3 a. follow all recommendations made in the assessment and
- 4 evaluation for treatment at the defendant's expense,
- 5 b. two hundred forty (240) hours of community service,
- 6 c. use of an ignition interlock device, as provided by
- 7 subparagraph n of paragraph 1 of subsection A of
- 8 Section 991a of Title 22 of the Oklahoma Statutes,
- 9 d. imprisonment in the custody of the Department of
- 10 Corrections for not less than one (1) year and not
- 11 more than ten (10) years, and
- 12 e. a fine not more than Five Thousand Dollars
- 13 (\$5,000.00).

14 However, if the treatment in subsection H of this section does  
15 not include residential or inpatient treatment for a period of not  
16 less than ten (10) days, the person shall serve a term of  
17 imprisonment of at least ten (10) days.

18 4. Any person who commits a violation of this section after  
19 having been twice convicted of a felony offense pursuant to the  
20 provisions of this section or a violation pursuant to the provisions  
21 of any law of this state or another state prohibiting the offenses  
22 provided for in this section, Section 11-904 of this title, or  
23 paragraph 4 of subsection A of Section 852.1 of Title 21 of the  
24 Oklahoma Statutes shall be guilty of a Class B3 felony offense and

1 participate in an assessment and evaluation pursuant to subsection H  
2 of this section and shall be sentenced to:

- 3           a. follow all recommendations made in the assessment and  
4           evaluation for treatment at the defendant's expense,  
5           followed by not less than one (1) year of supervision  
6           and periodic testing, as provided in subparagraph q of  
7           paragraph 1 of subsection A of Section 991a of Title  
8           22 of the Oklahoma Statutes, at the defendant's  
9           expense,
- 10          b. four hundred eighty (480) hours of community service,
- 11          c. use of an ignition interlock device, as provided by  
12          subparagraph n of paragraph 1 of subsection A of  
13          Section 991a of Title 22 of the Oklahoma Statutes, for  
14          a minimum of ninety (90) days,
- 15          d. imprisonment in the custody of the Department of  
16          Corrections for not less than one (1) year and not  
17          more than twenty (20) years, and
- 18          e. a fine not more than Five Thousand Dollars  
19          (\$5,000.00).

20          However, if the person does not undergo residential or inpatient  
21          treatment pursuant to subsection H of this section, the person shall  
22          serve a term of imprisonment of at least ten (10) days.

23          5. Any person who, after a previous conviction of a violation  
24          of murder in the second degree or manslaughter in the first degree

1 in which the death was caused as a result of driving under the  
2 influence of alcohol or other intoxicating substance, is convicted  
3 of a violation of this section shall be guilty of a Class A2 felony  
4 offense and shall be punished by imprisonment in the custody of the  
5 Department of Corrections for not less than five (5) years and not  
6 to exceed twenty (20) years, and a fine not more than Ten Thousand  
7 Dollars (\$10,000.00).

8 6. Provided, however, a conviction from another state shall not  
9 be used to enhance punishment pursuant to the provisions of this  
10 subsection if that conviction is based on a blood or breath alcohol  
11 concentration of less than eight-hundredths (0.08).

12 7. In any case in which a defendant is charged with driving  
13 under the influence of alcohol or other intoxicating substance  
14 offense within any municipality with a municipal court other than a  
15 court of record, the charge shall be presented to the county's  
16 district attorney and filed with the district court of the county  
17 within which the municipality is located.

18 D. Any person who is convicted of a violation of driving under  
19 the influence while also committing one of more of the following  
20 acts:

21 1. Driving, operating, or being in actual physical control of a  
22 motor vehicle while having a blood or breath alcohol concentration  
23 of fifteen-hundredths (0.15) or more at the time of a test of such  
24 person's blood or breath;

1        2. Causing a motor vehicle incident involving one or more  
2 vehicles that results in a report pursuant to Section 40-102 of this  
3 title;

4        3. Driving in a manner that violates the provisions of Section  
5 11-301, 11-302, 11-306, 11-309, or 11-311 of this title;

6        4. Driving while eluding peace officers pursuant to Section  
7 540a of Title 21 of the Oklahoma Statutes;

8        5. Driving with a speed in excess of twenty (20) miles per hour  
9 over the speed limit or ten (10) miles per hour over the speed limit  
10 within an active school zone;

11       6. Operating a motor vehicle with a passenger younger than  
12 eighteen (18) years of age; or

13       7. Reckless driving as defined in Section 11-901 of this title,  
14 shall, upon conviction, be guilty of aggravated driving under the  
15 influence, which shall be a Class B3 felony offense.

16       E. A person convicted of aggravated driving under the influence  
17 shall participate in an assessment and evaluation pursuant to  
18 subsection H of this section and shall comply with all  
19 recommendations for treatment. Such person shall be sentenced as  
20 provided in paragraph 1, 2, 3, 4, or 5 of subsection C of this  
21 section and to:

22       1. Imprisonment as provided in paragraph 1, 2, 3, 4, or 5 of  
23 subsection C of this section, provided that:

1           a.    for a first offense of a violation pursuant to this  
2                section, the first ten (10) days of the sentence shall  
3                not be subject to probation, suspension, or deferral  
4                and may be served by night or weekend incarceration  
5                pursuant to Section 991a of Title 22 of the Oklahoma  
6                Statutes,

7           b.    for a second offense of a violation pursuant to this  
8                section, the first thirty (30) days of the sentence  
9                shall not be subject to probation, suspension, or  
10               deferral; provided further, this mandatory minimum  
11               period of confinement shall be served in the county  
12               jail as a condition of a suspended or deferred  
13               sentence, pursuant to Section 991a of Title 22 of the  
14               Oklahoma Statutes, and

15          c.    the portion of the sentence not subject to probation,  
16                suspension, or deferral shall increase by thirty (30)  
17                days for each subsequent conviction after the second  
18                offense;

19          2.    A fine pursuant to paragraph 1, 2, 3, 4, or 5 of subsection  
20    C of this section;

21          3.    Not less than one (1) year of supervision and periodic  
22    testing, as provided in subparagraph q of paragraph 1 of subsection  
23    A of Section 991a of Title 22 of the Oklahoma Statutes, at the  
24    defendant's expense; and

1       4. An ignition interlock device or devices, as provided by  
2 subparagraph n of paragraph 1 of subsection A of Section 991a of  
3 Title 22 of the Oklahoma Statutes, for a minimum of one hundred  
4 eighty (180) days.

5       F. When a person is sentenced to imprisonment in the custody of  
6 the Department of Corrections, the person shall be processed through  
7 the Lexington Assessment and Reception Center or at a place  
8 determined by the Director of the Department of Corrections. The  
9 Department of Corrections shall classify and assign the person to  
10 one or more of the following:

11       1. The Department of Mental Health and Substance Abuse Services  
12 pursuant to paragraph 1 of subsection A of Section 612 of Title 57  
13 of the Oklahoma Statutes; or

14       2. A correctional facility operated by the Department of  
15 Corrections with assignment to substance abuse treatment.  
16 Successful completion of a Department-of-Corrections-approved  
17 substance abuse treatment program shall satisfy the recommendation  
18 for a ten-hour or twenty-four-hour alcohol and drug substance abuse  
19 course or treatment program or both. Successful completion of an  
20 approved Department of Corrections substance abuse treatment program  
21 may precede or follow the required assessment.

22       G. Service Oklahoma is hereby authorized to reinstate any  
23 suspended or revoked driving privilege when the person meets the  
24 statutory requirements which affect the existing driving privilege.

1       H. Any person who is found guilty of a violation of the  
2 provisions of this section shall be ordered to participate in an  
3 alcohol and drug substance abuse evaluation and assessment program  
4 offered by a certified assessment agency or certified assessor for  
5 the purpose of evaluating and assessing the receptivity to treatment  
6 and prognosis of the person and shall follow all recommendations  
7 made in the assessment and evaluation for treatment. The court  
8 shall order the person to reimburse the agency or assessor for the  
9 evaluation and assessment. Payment shall be remitted by the  
10 defendant or on behalf of the defendant by any third party, provided  
11 no state-appropriated funds are utilized. The fee for an evaluation  
12 and assessment shall be the amount provided in subsection C of  
13 Section 3-460 of Title 43A of the Oklahoma Statutes. The evaluation  
14 and assessment shall be conducted at a certified assessment agency,  
15 the office of a certified assessor, or at another location as  
16 ordered by the court. The agency or assessor shall, within seventy-  
17 two (72) hours from the time the person is evaluated and assessed,  
18 submit a written report to the court for the purpose of assisting  
19 the court in its sentencing determination. The court shall, as a  
20 condition of any sentence imposed, including deferred and suspended  
21 sentences, require the person to participate in and successfully  
22 complete all recommendations from the evaluation, such as an alcohol  
23 and substance abuse treatment program pursuant to Section 3-452 of  
24 Title 43A of the Oklahoma Statutes. If such report indicates that

1 the evaluation and assessment shows that the defendant would benefit  
2 from a ten-hour or twenty-four-hour alcohol and drug substance abuse  
3 course or a treatment program or both, the court shall, as a  
4 condition of any sentence imposed, including deferred and suspended  
5 sentences, require the person to follow all recommendations  
6 identified by the evaluation and assessment and ordered by the  
7 court. No person, agency, or facility operating an evaluation and  
8 assessment program certified by the Department of Mental Health and  
9 Substance Abuse Services shall solicit or refer any person evaluated  
10 and assessed pursuant to this section for any treatment program or  
11 substance abuse service in which such person, agency, or facility  
12 has a vested interest; however, this provision shall not be  
13 construed to prohibit the court from ordering participation in or  
14 any person from voluntarily utilizing a treatment program or  
15 substance abuse service offered by such person, agency, or facility.  
16 If a person is sentenced to imprisonment in the custody of the  
17 Department of Corrections and the court has received a written  
18 evaluation report pursuant to the provisions of this subsection, the  
19 report shall be furnished to the Department of Corrections with the  
20 judgment and sentence. Any evaluation and assessment report  
21 submitted to the court pursuant to the provisions of this subsection  
22 shall be handled in a manner which will keep such report  
23 confidential from the general public's review. Nothing contained in  
24 this subsection shall be construed to prohibit the court from



1 ordering judgment and sentence in the event the defendant fails or  
2 refuses to comply with an order of the court to obtain the  
3 evaluation and assessment required by this subsection. If the  
4 defendant fails or refuses to comply with an order of the court to  
5 obtain the evaluation and assessment, Service Oklahoma shall not  
6 reinstate driving privileges until the defendant has complied in  
7 full with such order. Nothing contained in this subsection shall be  
8 construed to prohibit the court from ordering judgment and sentence  
9 and any other sanction authorized by law for failure or refusal to  
10 comply with an order of the court.

11 I. Any person who is found guilty of a violation of the  
12 provisions of this section shall be required by the court to attend  
13 a victims impact panel program, as defined in subsection H of  
14 Section 991a of Title 22 of the Oklahoma Statutes, if such a program  
15 is offered in the county where the judgment is rendered, and to pay  
16 a fee of Seventy-five Dollars (\$75.00), as set by the governing  
17 authority of the program and approved by the court, to the program  
18 to offset the cost of participation by the defendant, if in the  
19 opinion of the court the defendant has the ability to pay such fee.

20 J. Any person who is found guilty of a felony violation of the  
21 provisions of this section shall be required to submit to electronic  
22 monitoring as authorized and defined by Section 991a of Title 22 of  
23 the Oklahoma Statutes.

24

1 K. Any person who is found guilty of a violation of the  
2 provisions of this section who has been sentenced by the court to  
3 perform any type of community service shall not be permitted to pay  
4 a fine in lieu of performing the community service.

5 ~~L. When a person is found guilty of a violation of the~~  
6 ~~provisions of this section, the court shall order, in addition to~~  
7 ~~any other penalty, the defendant to pay an assessment of One Hundred~~  
8 ~~Dollars (\$100.00) to be deposited in the Drug Abuse Education and~~  
9 ~~Treatment Revolving Fund created in Section 2-503.2 of Title 63 of~~  
10 ~~the Oklahoma Statutes, upon collection.~~

11 ~~M.~~ 1. When a person is eighteen (18) years of age or older,  
12 and is the driver, operator, or person in physical control of a  
13 vehicle, and is convicted of violating any provision of this section  
14 while transporting or having in the motor vehicle any child less  
15 than eighteen (18) years of age, the fine shall be enhanced to  
16 double the amount of the fine imposed for the underlying driving  
17 under the influence (DUI) violation which shall be in addition to  
18 any other penalties allowed by this section.

19 2. Nothing in this subsection shall prohibit the prosecution of  
20 a person pursuant to Section 852.1 of Title 21 of the Oklahoma  
21 Statutes who is in violation of any provision of this section or  
22 Section 11-904 of this title.

23 ~~N.~~ M. Any plea of guilty, nolo contendere, or finding of guilt  
24 for a violation of this section or a violation pursuant to the

1 provisions of any law of this state or another state prohibiting the  
2 offenses provided for in this section, Section 11-904 of this title,  
3 or paragraph 4 of subsection A of Section 852.1 of Title 21 of the  
4 Oklahoma Statutes shall constitute a conviction of the offense for  
5 the purpose of this section; provided, any deferred judgment shall  
6 only be considered to constitute a conviction for a period of ten  
7 (10) years following the completion of any court-imposed  
8 probationary term.

9 ~~Ø.~~ N. If qualified by knowledge, skill, experience, training,  
10 or education, a witness shall be allowed to testify in the form of  
11 an opinion or otherwise solely on the issue of impairment, but not  
12 on the issue of specific alcohol concentration level, relating to  
13 the following:

14 1. The results of any standardized field sobriety test  
15 including, but not limited to, the horizontal gaze nystagmus (HGN)  
16 test administered by a person who has completed training in  
17 standardized field sobriety testing; or

18 2. Whether a person was under the influence of one or more  
19 impairing substances and the category of such impairing substance or  
20 substances. A witness who has received training and holds a current  
21 certification as a drug recognition expert shall be qualified to  
22 give the testimony in any case in which such testimony may be  
23 relevant.

SECTION 68. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 3, Chapter 172, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 69. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 6, Chapter 305, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 70. REPEALER 47 O.S. 2021, Section 11-902, as amended by Section 33, Chapter 486, O.S.L. 2025 (47 O.S. Supp. 2025, Section 11-902), is hereby repealed.

SECTION 71. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 17th day of March, 2026.

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Presiding Officer of the Senate

Passed the House of Representatives the \_\_\_\_ day of \_\_\_\_\_,  
2026.

Presiding Officer of the House  
of Representatives